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4TH SEMESTER CONSTITUTIONAL LAW NOTES

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CONSTITUTIONAL LAW

Q. Write a short note on different objectives enshrined in the Preamble to the Constitution of India. Discuss the nature and the significance of the Preamble to the Constitution of India. What purpose does the preamble serve? Explain the term 'sovereign', 'democratic', 'socialist' and secular.

The Preamble to the Constitution of India records the aims and aspirations of the people of India which have been translated into the various provisions of the Constitution. A Preamble means the introduction to the statute. The objectives before the Constituent Assembly were to constitute India into a "sovereign democratic republic" and to secure its citizens "justice liberty, equality and fraternity". The ultimate aim of the makers of the Constitution was to have a welfare state and an egalitarian society projecting the aims and aspirations of the people of India who sacrificed everything for the attainment of country's freedom. It is worthwhile to note that the preamble was adopted by the Constituent Assembly after the Draft Constitution had been approved. The basic idea behind it was the preamble should be in conformity with the provisions of the constitution and express in a few words the philosophy of the constitution. It may be recalled that after the transfer of power, the constituent Assembly became sovereign, which is reflected in the use of words "give to ourselves this constitution" in the preamble. It also implied that the preamble emanated from the people of India and sovereignty lies with them.

Chief Justice Subba Rao in ***Golak Nath v. State of Punjab, AIR 1967 SC 1643*** had held that "The preamble to an Act sets out the main objectives which the legislation is intended to achieve".

Unlike the Constitution of Australia, Canada or U.S.A., the constitution of India has an elaborate preamble. The purpose of the preamble is to clarify who has made the constitution, what is its source, what is the ultimate sanction behind it, what is the nature of the polity which is sought to be established by the constitution.

Object, Purpose and Scope of the Preamble

The Preamble does not grant any power but it gives a direction and purpose to the Constitution. It outlines the objectives of the whole Constitution. The Preamble contains the fundamentals of the constitution. The preamble to an Act sets out the main objectives which the legislation is intended to achieve.

The proper function of preamble is to explain and recite certain facts which are necessary to be explained and recited, before the enactment contained in an act of Parliament could be understood. A preamble may be used for other reasons, such as, to limit the scope of certain expressions or to explain facts or introduce definitions. It usually states, or professes to state, the general object and meaning of the legislature in passing the measure. Hence it may be legitimately consulted for the purpose of solving

an ambiguity or fixing the connotation of words which may possibly have more meaning, or determining of the Act, whenever the enacting part in any of these respect is prone to doubt. In a nutshell, a court may look into the object and policy of the Act as recited in the Preamble when a doubt arises in its mind as to whether the narrower or the more liberal interpretation ought to be placed on the language which is capable of bearing both meanings. In **A.K Gopalan v. State of Madras, AIR 1950 SC 27** it was contended that the preamble to our constitution which seeks to give India a 'democratic' constitution should be the guiding start in its interpretation and hence any law made under Article 21 should be held as void if it offends the principles of natural justice, for otherwise the so-called "fundamental" rights to life and personal liberty would have no protection. The majority on the bench of the Supreme Court rejected this contention holding that 'law' in article 21 refers to positive or state made law and not natural justice, and that this meaning of the language of article 21 could not be modified with reference to the preamble. In **Berubari Union and Exchange of Enclaves, AIR 1960 SC 84**, the Supreme Court held that the preamble had never been regarded as the source of any substantive power conferred on the government or on any of its departments. The court further explained that **"what is true about the powers is equally true about the prohibitions and limitations"**. It, therefore, observed that the preamble had limited application. The court laid down that the preamble would not be resorted to if the language of the enactment contained in the constitution was clear. However, "if the terms used in any of the articles in the constitution are ambiguous or capable of two meanings, in interpreting them some assistance may be sought in the objectives enshrined in the Preamble." In **State of Rajasthan v. Basant Nahata, AIR 2005 SC 3401** it was held that a preamble with an ordinary Statute is to be resorted only when the language is itself capable of more than one meaning and not when something is not capable of being given a precise meaning as in case of public policy.

In **Kesvanandan Bharati v. State of Kerala AIR 1973 SC 1461**, case the Supreme Court attached much importance to the preamble. In this case, the main question before the Supreme Court related to the scope of amending power of the Union Parliament under Article 368 of the Constitution of India. The Supreme Court traced the history of the drafting and ultimate adoption of the Preamble. Chief Justice Sikri observed,

"No authority has been referred before us to establish the propositions that what is true about the powers is equally true about the prohibitions and limitations. Even from the Preamble limitations have been derived in some cases. It seems to me that the preamble of our Constitution is of extreme importance and the constitution should be read and interpreted in the light of the grand and noble vision expressed in the preamble."

A ^{*}majority of the full bench held that the objectives specified in the preamble contain the basic structure of our constitution, which cannot be amended in exercise of the power under Article 368 of the constitution. It was further held that being a part of the constitution, the preamble was not outside the reach of the amending power of the Parliament under article 368. It was in the exercise of this amending power that the constitution (42nd amendment) Act 1976 amended the preamble inserting therein, the terms socialist, secular and integrity.

In the 1995 case of **Union Government v. LIC of India** also the Supreme Court has once again held that the Preamble is an integral part of the Constitution.

The Preamble serves the following purposes:

- a) It indicates the source from which the Constitution comes, viz., the people of India.
- b) It contains the enacting clause which brings into force, the Constitution which makes it an act of the people, for the people and by the people.
- c) *It declares the rights and freedoms which the people of India intended to provide to all citizens and the basic type of government and polity which was to be established.* [xi]

Interpretation Value of the Preamble

The Preamble of Indian Constitution reflects the basic structure and the spirit of the Constitution. It is regarded that the preamble serves as a channelizing tool for the interpretation of the constitution as a whole. The preamble acts as the preface of the constitution of India and lays down the philosophical ideas. It represents the entire constitution in its written words.

The Preamble declares four aims in the governance of India-

- Justice- social, economic and political;
- Liberty of thoughts, expression, belief, faith and worship;
- Equality of status and opportunity;
- And Fraternity assuring the dignity of the individual and the unity and integrity of the nation.
- **Preamble as Projector of 'Desired Established State'**

The Preamble proclaims the solemn resolution of the people of India to constitute India into a 'Sovereign socialist secular democratic republic'. The Preamble was adopted with the constitution in the constituent assembly. It came into effect in 1950 along with the constitution. The original draft of the constitution opened with the words 'Sovereign Democratic Republic' in the first line. The words 'Socialist and Secular' were inserted by the 42nd amendment in 1976. The same amendment contributed to the changes of the words unity of the nation into unity and integrity of the nation. The significance of the preamble of Indian constitution lies in the 'We the People'. These words emphasizes that the ultimately the powers are vested in the hands of the people of India.

According to the preamble of the constitution of India, the word Sovereign occupies a vital role in the country. It means supreme or independent and embodies India is internally and externally sovereign and is free from the control of any foreign power. The word Socialist also has enormous significance as it implies economic and social equality. The word was added by the 42nd Amendment Act 1976 during the

emergency. The preamble also guarantees secularism. The word Secularism was also inserted into the preamble by the 42nd amendment act 1976. Secularism implies equality of all religions and religious tolerance and does not identify any state religion. The preamble of Indian Constitution also puts forth the words Democratic and Republic. India follows a Democratic form of government. The people of India elect their government at all levels such as Union, State and local by a system of universal adult franchise. India is also a Republic, in a country where the head of the state is elected directly or indirectly, for a fixed tenure. The president of India is the titular head of the state. Thus, the preamble plays a pivotal role.

SOVEREIGN

According to preamble, the constitution of India has been pursuance of the 'solemn resolution of the people of India to constitute India into a 'Sovereign Democratic Republic', and to secure well defined objects set forth in the preamble. Sovereignty denotes supreme and ultimate power. It may be real or normal, legal or political, individual or pluralistic. In monarchical orders, sovereignty was vested in the person of monarchs. But, in republican form of governments, which mostly prevail in the contemporary world, sovereignty is shifted to the elected representatives of the people. According to D.D Basu, the word 'sovereign' is taken from article 5 of the constitution of Ireland. 'Sovereign or supreme power is that which is absolute and uncontrolled within its own sphere'. In the words of Cooley, "A state is sovereign when there resides within itself supreme and absolute power, acknowledging no superior". Sovereignty, in short, means the independent authority of a state. It has two aspects- external and internal. **External sovereignty** or sovereignty in international law means the independence of a state of the will of other states, in her conduct with other states in the comity of nations. Sovereign in its relation between states and among states signifies independence. The external sovereignty of India means that it can acquire foreign territory and also cede any part of the Indian territory, subject to limitations(if any) imposed by the constitution. On the other hand, **internal sovereignty** refers to the relationship between the states and the individuals within its territory. Internal sovereignty relates to internal and domestic affairs, and is divided into four organs, namely, the executive, the legislature, the judiciary and the administrative. Though India became a sovereign country on 26th January, 1950, having equal status with the other members of the international community, she decided to remain in the Commonwealth of Nations. Pandit Nehru declared that India will continue – "her full membership of the Commonwealth of Nations and her acceptance of the King as the symbol of the free association of the independent nations and as such the Head of the Commonwealth". Her membership of the Commonwealth of Nations and that of the United Nations Organization do not affect her sovereignty to any extent. It is merely a voluntary association of India and it is open to India to cut off this association at her will, and that it has no constitutional significance.

SOCIALIST

The constitutional commitment to the goal of socio-economic justice, as envisaged by the original preamble by the constitution of India has been fortified by the constitution (42nd Amendment) Act, 1976. The term 'socialist' literally means a political-economic system which advocates state's ownership of the means of production, distribution and exchange.[xix] Concise Oxford Dictionary defines 'socialism' as a political and economic theory of a social organisation which advocates that the means of production, distribution and exchange should be owned or regulated by the community as whole." Professor M.C Jain Kagzi while noting that socialism has interspersed in the provision of the constitution remarks that preambular reference was intended ushering in a socio-economic revolution.

The term 'socialist' has not been defined in the constitution. Professor M.P Jain observes that the term 'does not however envisage doctrinaire socialism in the sense of insistence on state ownership as a matter of policy'. It does not mean total exclusion of private enterprise and complete state ownership of material resources of the nation. D.D. Basu regards that Supreme Court has gone a step further toward social justice. P.M Bakshi understands socialism in the context of social justice. A broad spectrum of Indian jurists and authors admit the relevance of socialism in India. Swarn Singh, the chief architect of the 42nd amendment Act, 1976 explained that by the word 'socialism' nothing more was meant than what was explained at the Awadi session of Congress, which is short aimed at a 'mixed economy'. Mrs. Indira Gandhi, the then Prime Minister, further explained that the term 'socialist' was used simply to indicate that the goal of the state in India was to secure a 'better life for the people' or 'equality of opportunity'. She said that socialism like democracy was interpretable differently in different countries. She, thus, made it clear that India had her own concept of socialism and all she wanted was a better life for the people. That the framers wished to go socialist was never in doubt. Our first Prime Minister and a member of the Constituent Assembly Pt. Jawaharlal Nehru exclaimed "I stand for socialism and I hope, India will stand for Socialism and that India will go towards the constitution of a socialist state, and I do believe that the whole world will go that way."

In ***Excel Wear v. Union of India, AIR 1979 SC 25*** the Supreme Court observed that "the addition of the word socialist might enable the courts to lean more in favour of nationalization and state ownership of the industry. But, so long as private ownership of industries is recognized and governs an overwhelming large proportion of our economic structure, the principle of socialism and social justice cannot be pushed to such an extent so as to ignore completely or to a very large extent, the interest of another section of the public, namely, the private owners of the undertaking."

In ***D.S Nakara v. Union of India, AIR 1983 SC 25*** the court observed that, "the basic framework of socialism is to provide a decent standard of life to the working people and especially provide security from cradle to grave." The principle aim of socialist State, the Supreme Court held, was to eliminate inequality in income and status and standard of life.

In ***Air India Statutory Corporation v. United Labour Union, AIR 1997 SC 645*** the Supreme Court elaborated the concept of "socialism" and stated that the word socialism was expressly brought in the constitution to establish an egalitarian social order through rule of law as its basic structure.

In ***Samatha v. State of Andhra Pradesh, AIR 1997 SC 3297*** the Supreme Court observed that the word Socialist used in the Preamble must be read from the goals, Article 14,15,16,17,21,23,38,39,46 and all other cognate Articles sought to establish, i.e. to reduce inequalities in income and status and to provide equality of opportunities and facilities.

SECULAR

In Webster's Dictionary the word 'secular' has been described as a 'view of life', or of any particular matter based on premise that religious considerations should be ignored or purposefully excluded or as a system of social ethics based upon doctrine that ethical standards and conduct be determined exclusively without reference to religion. It is the rational approach to life and it refuses to give plea for religion. For the first time, by the 42nd amendment of the constitution in 1976, the term-'secular' was inserted into the Preamble but without a definition of the term. Secular is derived from the Latin word *speculum*, which means an indefinite period of time. Before the mid-nineteenth century, the word 'secular' was occasionally used with contempt. Although the term secular was not included anywhere in the constitution, as it was originally adopted on November 26, 1949, the founding fathers of the constitution were clear in their mind as to what they meant by secularism. The word secular has no Indian origin. It traces its origin from West in context of Christian religion. Unlike in the West, in India secularism was never born out of the conflict between the church or the temple and the State. It was rooted in India's own past history and culture. It is based on the desire of the founding fathers to be just and fair to all communities irrespective of their number. The term secular inserted by the Constitution (42nd Amendment) Act, 1976, explains that the state does not recognize any religion as a state religion and that it treats all religions equally, and with equal respect, without, in any manner, interfering with their individual rights of religion, faith or worship. It does not mean that it is an irreligious or atheistic state. Nor, it means that India is an anti-religious state. It neither promotes nor practices any particular religion, nor it interferes with any religious practice. The constitution ensures equal freedom to all religions.

The Supreme Court in ***St. Xavier's College v. State of Gujarat, AIR 1974 SC 1889***, explained "secularism is neither anti-God nor pro-God, it treats alike the devout, the agnostic and the atheist. It eliminates God from the matters of the state and ensures that no one shall be discriminated against on the grounds of religion". That, every person is free to mould or regulate his relations with his God in any manner. He is free to go to God or to heaven in his own ways. And, that worshipping God is left to be dictated by his own conscience.

In ***S.R Bommai v. Union of India, AIR 1994 SC 1918***, a nine judge bench of the apex court observed that the concept of "Secularism" was very much embedded in our constitutional philosophy. What was implicit earlier had been made explicit by the constitution (42nd amendment) in 1976.

In ***Aruna Roy v. Union of India, AIR 2003 SC 3176***, the Supreme Court has said that secularism has a positive meaning that is developing, understanding and respect towards different religions. Recently in ***I.R Coelho v. State of Tamil Nadu, AIR 2007 SC 861***, it has been held that secularism is a matter of

conclusion to be drawn from various Articles conferring Fundamental Rights. “If the secular character is not to be found in Part III”, the Court ruled, *“it cannot be found anywhere else in the Constitution, because every fundamental right in Part III stands either for a principle or a matter of detail”*.

In **Valsamma Paul v. Cochin University, AIR 1996 SC 1011**, the apex court emphasised that inter-caste marriages and adoption were two important social institutions through which “secularism” would find its fruitful and solid base for an egalitarian social order under the Constitution of India. “Secularism,” the court said, was a bridge between religions in a multi-religious society to cross over the barriers of their diversity. In the positive sense it was the cornerstone of an egalitarian and forward looking society which our constitution endeavored to establish.

DEMOCRATIC

The term Democracy is derived from Greek words ‘demos’ which means ‘people’ and ‘kratos’ which means ‘authority’. It thus means government by the people. Democracy may properly be defined as that form of government in the administration of which the mass of adult population has some direct or indirect share.

The Supreme Court in **Mohan Lal v. District Magistrate, Rai Bareilly AIR 1993 SC 2042**, observed: “Democracy is a concept, a political philosophy, an ideal practised by many nations culturally advanced and politically mature by resorting to governance by representatives of the people elected directly or indirectly”. The basic principle of democracy in a society governed by the rule of Law is not only to respect the will of the majority, but also to prevent dictatorship of the majority”.

Democracy may be a direct or indirect democracy. In a direct democracy every people exercise the power of the government. The people as a whole not only carry on the government, but can even change the constitution by their direct vote. In an indirect democracy, the people elect their representatives who carry on the administration of the government directly. It is also known as representative democracy. In India, constitution provides for a Parliamentary Representative Democracy. The apex court in **Union of India v. Association for Democratic Reforms, AIR 2002 SC 2112**, observed: “A successful democracy posits an ‘aware’ citizenry”. “Democracy cannot survive”, the court said, without free and fair elections, without free and fairly informed voters.” This states that free and fair elections are the most important features of democracy. Thus democracy implies that all three powers of the government i.e. the executive, the legislature and the judiciary should be separate, yet mutually independent. Democracy is also a way of life and it must maintain human dignity, equality and rule of law.

Thus, the sovereign Constitutional state established by the framers could only be Ramrajya and people’s democracy. Only in the democratic state the sovereignty would be vested in the people and the Nation. In reaffirmation to the democratic principle, the Constitution was adopted, enacted and adopted by the Constituent Assembly in the name of, and for “We, the People of India.”

REPUBLIC

A republic means a state in which the supreme power rests in the people and their elected representatives or officers, as opposed to one governed by the king or a similar ruler. The word 'republic' is derived from *res publica*, meaning public property or commonwealth. According to Montesquieu, "a republican government is that in which a body, or only a part of people, is possessed of the supreme power". The term 'republic' is used in distinction to monarchy. A republic means a form of government in which the head of the state is an elected person and not a hereditary monarch like the king or the queen in Great Britain. Under such a system, the political sovereignty is vested in the people and the head of the state is the person elected by the people for a fixed term. In a wider sense, the word 'republic' denotes a government where no one holds the public power as a proprietary right, but all power is exercised for the common good where inhabitants are the subjects and free citizens at the same time. The constitution of India envisions

the Indian government as a 'republican form of government', in which, the ultimate power resides in the body of the people exercised via universal adult suffrage. The president of India who is the executive head of the state is elected by the people (though indirectly) who holds office for a term of five years. All citizens are equal in the eyes of law, there is no privileged class and all public offices are open for all the citizens without any distinction on basis of race, caste, sex or creed.

In a republic, the state sovereignty is vested in, and held by the people, and the political power is exercised popularly as an expression of the people's sovereign command, grace or pleasure. The Constitution is adopted and given to themselves by the People. The Constitution of India has been adopted enacted and given "To ourselves by "We, the People".

Conclusion

To conclude, it will not be wrong to say that the spirit or the ideology behind the Constitution is sufficiently crystallized in the preamble. It is also right to state that preamble is the basic part of any document and it is but obvious to our constitution because it is the supreme law of our country. The preamble declares that the people of India adopted, enacted and gave to themselves the constitution on 26th November, 1949 but the date of commencement of the constitution was fixed to 26 January, 1950. Article 394 provides that Articles 5, 6, 7, 8, 9, 60, 324, 367, 379 and 394 came into force on the adoption of the constitution on 26th November, 1949. The rest of the provisions of the constitution came into force on 26th January, 1950 and this day is referred to as the commencement of the constitution. The preamble is of considerable legal significance in so far as embodies an enacting clause. It cannot be resorted to as the basic in construing the various provisions of the constitution, which are couched in plain language.

The Preamble highlights some of the fundamental values and guiding principles on which the constitution is based. It is a guiding light having interpretational value. It plays a pivotal role in case of ambiguity. The Preamble of the Constitution of India is one of the best of its kind ever drafted. Both in

ideas and expression it is a unique one. It embodies the spirit of the constitution to build up an independent nation which will ensure the triumph of justice, liberty, equality and fraternity.

Q. Define the State under Article 12 of the Constitution of India. Discuss with case law the concept of “all local or other authorities” under Article 12 of the Constitution of India. Is Judiciary a State within the meaning of Article 12?

Article 12 gives an extended significance to the term ‘state’. Art 12 clarifies that the term ‘state’ occurring in Art 13(2), or any other provision concerning Fundamental Rights, has an expansive meaning.

According to Art. 12, the term ‘state’ includes –

1. The Government and Parliament of India;
2. The Government and the Legislature of a State;
- All local authorities; and
1. *Other authorities* within the territory of India, or under the control of the Central Government.

It has been pointed out at the outset that the device of guaranteeing fundamental rights by a Bill of Rights in a written Constitution was to protect the individual from governmental aggression and not from aggression by another individual, for which remedies under ordinary law were sufficient. It was to bind the state itself, the makers of laws, that fundamental rights have their origin.

Scope of Article 12

The definition of Article 12 is only for the purpose of application of the provisions contained in Part III. It cannot be used to interpret any provision outside Part III, e.g., Art. 311. Within the territory of India or under the control of the Government of India is limited in its application only to Part III and by virtue of Art. 36, to Part IV: it does not extend to other provisions of the Constitution and hence a juristic entity which may be a ‘State’ for the purpose of Part III and Part IV would not be so for the purpose of Part XIV or any other provisions of the Constitution.

Hence, even though a body of persons may not constitute ‘State’ within the instant definition, a writ under Art. 226 may lie against it on the non-constitutional grounds or on ground of contravention of some provisions of the Constitution outside Part III, e.g., where such body has a public duty to perform or where its acts are supported by the State or public officials.

Definition of State

Initially, the definition of State was treated as exhaustive and confined to the authorities or those which could be read *ejusdem generis* with the authorities mention in the definition of Art. 12 itself. The next

stage was reached when the definition of “State” came to be understood with reference to remedies available against it. Thus, a statutory corporation, with regulations framed by such corporation pursuant to statutory powers was considered a State, and public duty was limited to those which were created by statute. The picture that ultimately emerges is that the tests formulated in ***Ajay Hasia Etc vs Khalid Mujib Sehravardi & Ors., 1981 AIR 487*** are not a rigid set of principles so that, if a body falls within any one of them, it must, *ex hypothesi*, be considered to be a State within the meaning of Art. 12. The question in each case would be – whether in the light of cumulative facts as established, the body is financially, functionally and administratively dominated by or under the control of the govt. Such control must be particular to the body in question and must be pervasive. If this is found, then the body is a State within Art. 12. On the other hand, when the control is merely regulatory whether under statute or otherwise, it would not serve to make the body a State. Hence, when the body is financially, functionally and administratively dominated by or under the control of the government and such control is particular to the body and is pervasive, then it will be a ‘State’ within Art. 12. If the control is merely regulatory, it will not be a ‘State.’

Thus, the definition of ‘State’ in Art. 12 will include not only the Executive and Legislative organs of the Union and the States, but also local bodies (such as municipal authorities) as well as ‘other authorities’, which include the ‘instrumentalities and agencies’ of the State, or bodies or institutions which discharge public functions of a governmental character, or in other words, it comprises all acts which can be brought within the fold of ‘State action.’

Definition of Authority:

Literally ‘authority’ means a ‘person’ or a ‘body’ exercising power, or having a legal right to command and be obeyed.

In Art. 12 “State” has not been defined. It is merely an inclusive definition. It includes all the authorities within the territory of India or under the control of the Government of India. The word “or” is disjunction and not conjunctive. The expression “authority” has a definite connotation. It has different dimensions and, thus, must receive a liberal interpretation.

The term is wide enough to include all bodies created by the statute on which powers are conferred to carry out governmental or quasi- governmental functions. The word ‘authority’ includes Central and State government.

The word ‘State’ and ‘Authority’ used in Art. 12 remain among “the great generalities of the Constitution” the concept of which has been and continues to be applied by Courts from time to time. It thus includes all constitutional and statutory authorities on whom powers are conferred by law, including even autonomous bodies, and whether or not they are under the control of the Government or whether or not they may be regarded as agents or delegates of the government.

Definition of Local authorities:- The expression “local authorities’ refers to authorities like municipalities, district boards, panchayats, improvement trusts, port trusts, mining settlement boards, etc., *Rashid Ahmed v. M.B. Kairana, AIR 1950 SC 163*, is one of the earliest instances where a municipal board was held to be a local authority under Article 12.

Other Authorities included under Article 12

Laying down the propositions in *Electricity Board, Rajasthan v. Mohan Lal, [1967] 3 SCR 377*, the Supreme Court held that ‘other authorities’ would include all authorities created by the Constitution or statute on which powers are conferred by law. It was not necessary that the statutory authority should be engaged in performing government or sovereign functions. In support the court cited, articles 19(1)(g) and 298 which contemplate engagement of the State in trade or business and article 46 which requires the State to promote educational and economic interests of the weaker sections of the people. In these cases ‘other authorities’ would cover bodies created for the purpose of performing commercial activities or for promoting the educational and economic interests of the weaker sections of the people. The court also noted that in the instant case the Rajasthan Electricity Board had power to give directions, the disobedience of which was punishable as an offence. This decision in effect overruled earlier decisions holding ‘university’ not to be “the State” within the meaning of article 12. Accordingly, the universities have been later held to be “the State”.

List of ‘other authorities’ coming under Art. 12:

There is no common feature running through the various bodies, which have been held to be covered by the expression ‘other authorities.’

The expression refers to –

1. Instrumentalities or agencies of the Government and Government Departments. But every instrumentality of Government is not necessarily a ‘Governmental Department’.
 2. Every type of public authority, exercising statutory powers, whether such powers are governmental or quasi-governmental or non-governmental, and whether such authority is under the control of government or not, and even though it may be engaged in carrying out some activities in nature of trade or commerce, e.g., A board, a University, the Chief Justice of High Court, having the power to issue rules, bye-laws or regulations having the force of law or the power to make statutory appointments; a public corporation, a government undertaking.
- * An authority set under a statute for the purpose of administering a law enacted by the legislature, including those vested with a duty to make decisions in order to implement them.
1. A private body or a company,
 2. Society registered under the Societies Registration Act.

3. Corporation set up under the State Financial Corporation Act, 1951.

But a non-statutory body, exercising no statutory powers is not a 'State', e.g.,

1. A company.
2. Private bodies having no statutory power, not being supported by a state act.
 - A society registered under the Societies Registration Act, unless it can be held that the society was an instrumentality or agency of the State, or exercises statutory powers to make rules, bye-laws or regulations having statutory force.
1. An autonomous body, which is controlled by the Government only as to the proper utilization of its financial grant.

Even a private body or a corporation or an aided private school may however, be included within the definition of 'State' if it acts as an 'agency' of the Government.

In determining whether a corporation or a Government company or a private body is an instrumentality or an agency of the state, the following tests would be applicable:

1. Whether the entire share capital is held by the government.
2. Whether the corporation enjoys the monopoly status conferred by the State.
 - Whether the functions of the corporation are the governmental functions or functions closely related thereto which are basically the responsibilities of a Welfare State.
1. If the department of the Government has been transferred to the corporation.
2. Volume of financial assistance received from the State.
3. The quantum of State control.
 - Whether any statutory duties are imposed upon the corporation.
 - The character of the corporation may change with respect to its different functions.

In **Zee Telefilms** case, Supreme Court has further held that since socio-economic policy of government has changed and the State is distancing itself from commercial activities and concentrating on governance rather on business, the scope of extending the scope of 'other authorities' is no longer necessary.

Also, an authority located outside the territory of India may still come under the definition of 'State' under Art. 12 if it is under the control of the Government of India.

Once a body is characterized an 'authority' under Art. 12, several significant incidents invariably follow:

1. The body becomes subject to the discipline of fundamental rights, which means that its actions and decisions can be challenged with reference to fundamental rights.
2. The body also becomes subject to the discipline of Administrative Law.

The body becomes subject to the writ jurisdiction of Supreme Court under Art. 32 and that of High Court under Art. 226.

WHETHER "STATE" INCLUDES THE JUDICIARY

The definition of State under Article 12 of the Constitution does not explicitly mention the Judiciary. Hence, a significant amount of controversy surrounds its status vis-a-vis Part III of the Constitution. Bringing the Judiciary within the scope of Article 12 would mean that it is deemed capable of acting in contravention of Fundamental Rights. It is well established that in its non-judicial functions, the Judiciary does come within the meaning of State. However, challenging a judicial decision which has achieved finality, under the writ jurisdiction of superior courts on the basis of violation of fundamental rights, remains open to debate.

On the one hand, the Judiciary is the organ of the State that decides the contours of the Fundamental Rights. Their determination, of whether an act violates the same, can be right or wrong. If it is wrong, the judicial decision cannot ordinarily be said to be a violation of fundamental rights. If this were allowed, it would involve protracted and perhaps unnecessary litigation, for in every case, there is necessarily an unsatisfied party. On the other hand, not allowing a decision to be challenged could mean a grave miscarriage of justice, and go unheeded, merely because the fallibility of the Judiciary is not recognized.

The erroneous judgment of subordinate Court is subjected to judicial review by the superior courts and to that effect, unreasonable decisions of the Courts are subjected to the tests of Article 14 of the Constitution.

The Bombay High Court in **Ratilal v. State of Bombay, AIR 1953** expressed the view that the Judgment of the Court cannot be challenged for violation of Fundamental Rights.

In the case of **Naresh v. State of Maharashtra 1966 (3) SCR 744**, The issue posed before the Supreme Court for consideration whether judiciary is covered by the expression 'State' in Article 12 of the Constitution. The Court held that the fundamental right is not infringed by the order of the Court and no writ can be issued to High Court. However in yet another case, it was held that High Court Judge is as much a part of the State as the executive.

In **Rati Lal v. State of Bombay**, it was held that Judiciary is not State for the purpose of Article 12. But Supreme Court in cases of **A.R. Antulay v. R.S. Nayak and N. S. Mirajkar v/s State of Maharashtra**, it

has been observed that when rule making power of Judiciary is concerned it is State but when exercise of judicial power is concerned it is Not State.

In ***Amirabbas v. State of M.P.***, the Court made the following observation: Denial of equality before the law or the equal protection of the laws can be claimed against executive or legislative process but not against the decision of a competent tribunal.

The scope of challenging a judicial decision on the ground of contravention of fundamental right is much narrower in India, for several reasons:

- 1) There being no 'Due Process' clause, there is no scope for challenging a judicial decision on a constitutional ground of unfairness
- 2) The decisions of the Supreme Court being binding upon all Courts within the territory of India [Art. 141], there is no scope for a decision of the Supreme Court being challenged as violative of a fundamental right. But there is no reason why the decision or order of a subordinate court shall not be open to be questioned on the ground that it contravenes a fundamental right.

In fact so far as the guarantee of equal protection in Article 14 is concerned, our Supreme Court, in the early case held that any State action, executive, legislative or judicial, which contravenes Article 14, is void.

But the Supreme Court limited the application of Article 14 to judicial decisions by the qualification that they will hit by the Article only when they involved a 'willful and purposeful discrimination'.

Q. Explain Doctrine of Eclipse and Doctrine of Severability. Define the terms 'law' and 'laws in force' as defined in Article 13(3) of the Constitution of India. Will a Constitution Amendment Act be considered as law under Article 13(3)?

This clause provides that all "laws in force" at the commencement of the Constitution which clash with the exercise of the Fundamental Rights, conferred by Part II of the Constitution shall, to that extent, be void. A pre constitution law, after the commencement of the Constitution must conform to the provisions of Part III of the Constitution. However, infringement of a fundamental right cannot be founded on a remote or speculative ground.

But this does not make the existing laws which are inconsistent with the fundamental rights void *ab initio*. The entire Part III of the Constitution including Art. 13(1) is prospective. Hence, existing laws which are inconsistent with any provision of Part III are rendered void only with effect from the commencement of the Constitution, which for the first time created the Fundamental Rights. The inconsistency referred to in Art. 13(1), therefore, does not affect transactions past and closed before the

commencement of the Constitution or the enforcement of rights and liabilities that had accrued under the 'inconsistent laws' before the commencement of the Constitution.

On the other hand, it does not mean that an unconstitutional procedure laid down by a pre-Constitution Act is to be followed in respect of 'pending' proceedings or in respect of new proceedings instituted with regard to pre-Constitution rights or liabilities. Just as there is no vested right in any course of procedure, there is no vested liability in matter of procedure in the absence of any special provision to the contrary.

But if the proceedings had been completed or become final before the commencement of the Constitution, nothing in the Fundamental Rights Chapter of the Constitution can operate retrospectively so as to affect those proceedings. For the same reason, it is not possible to impeach the validity of that part of the proceedings which had taken place under the inconsistent law, prior to the commencement of the Constitution.

The effect of Art. 13(1) is not to obliterate the inconsistent law from the statute book for all times or for all purposes or for all people. The effect is that the inconsistent law cannot, since the commencement of the Constitution stand in the way of exercise of fundamental rights by persons who are entitled to those rights under the commencement of the Constitution, as regards persons who have not been given fundamental rights, e.g., aliens.

DOCTRINE OF ECLIPSE

It says that any law inconsistent with Fundamental Rights is not invalid. It is not dead totally but overshadowed by the fundamental right. The inconsistency (conflict) can be removed by constitutional amendment to the relevant fundamental right so that eclipse vanishes and the entire law becomes valid.

- **Deep Chand v. UP** – Post constitutional law infringing fundamental right are void ab initio and doctrine of eclipse cannot apply.
- **Bhikhai Narian v. State of MP** – CP & Berar Motor Vehicle Act authorised state monopoly in motor vehicle business. Article 19(1)(g) made it void. Later on impugned law could be validated by a constitutional amendment.
- Schedule IX – Immune to judicial scrutiny, Article 31B – Allows for putting law under Schedule IX and here doctrine of eclipse could be used. All laws put under Schedule IX could be checked for basic structure.
- * **Ambica Mills Ltd. v. State Of Gujarat** – If a post constitutional statute is void because it infringes rights of citizen then that doesn't mean it is void for non-citizens as well as the law is limited to the void of contravention.
- **Shankri Prasad v. Union of India (1951)**– Amendment cannot be challenged as they are not law as per Article 13(2).

· **Golak Nath v. State of Punjab (1967)** - Amendment need to be constitutional.

In the case of **Keshavan Madhava Menon v. The State of Bombay, [1961] S.C.R. 288** the law in question was an **existing law** at the time when the Constitution came into force. That existing law imposed on the exercise of the right guaranteed to the citizens of India by article 19(1)(g) restrictions which could not be justified as reasonable under clause (6) **as it then stood** and consequently under article 13(1) that **existing law** became void **"to the extent of such inconsistency"**.

The court said that the law became void not **in toto** or for all purposes or for all times or for all persons but only **"to the extent of such inconsistency"**, that is to say, **to the extent it became inconsistent with the provisions of Part III which conferred the fundamental rights on the citizens.**

This reasoning was also adopted in the case of **Bhikaji Narain Dhakras And Others v. The State Of Madhya Pradesh And Another, AIR 1955 SC 781**. This case also held that *"on and after the commencement of the Constitution, the existing law, as a result of its becoming inconsistent with the provisions of article 19(1)(g) read with clause (6) as it then stood, could not be permitted to stand in the way of the exercise of that fundamental right. Article 13(1) by reason of its language cannot be read as having obliterated the entire operation of the inconsistent law or having wiped it out altogether the statute, book. Such law existed for all past transactions and for enforcement of rights and liabilities accrued before the date of the Constitution. The law continued in force, even after the commencement of the Constitution, with respect to persons who were not citizens and could not claim the fundamental right"*.

The court also said that article 13(1) had the effect of nullifying or rendering the existing law which had become inconsistent with fundamental right as it then stood, ineffectual, nugatory and devoid of any legal force or binding effect, **only with respect to the exercise of the fundamental right on and after the date of the commencement of the Constitution**. Finally the court said something that we today know of as the crux of **Doctrine of Eclipse**.

"The true position is that the impugned law became, as it were, eclipsed, for the time being, by the fundamental right."

We see that such laws are not dead for all purposes. They exist for the purposes of pre-Constitution rights and liabilities and they remain operative, even after the commencement of the Constitution, as against **non-citizens**. **It is only as against the citizens that they remain in a dormant or moribund condition.**

Thus the Doctrine of Eclipse provides for the validation of Pre-Constitution Laws that violate fundamental rights upon the premise that such laws are not null and void *ab initio* but become unenforceable only **to the extent of such inconsistency** with the fundamental rights. **If any subsequent amendment to the Constitution removes the inconsistency or the conflict of the existing law with the fundamental rights, then the Eclipse vanishes and that particular law again becomes active again.**

Post-Constitution laws, which are inconsistent, shall be void *ab initio*:

Art. 13(2) provides that any law made by any legislature or other authority after the commencement of the Constitution, which contravenes any of the fundamental rights included in Part III of the Constitution shall, to the extent of the contravention, be void.

As distinguished from Cl. (1), Cl. (2) makes the inconsistent laws void *ab initio* and even convictions made under such unconstitutional laws shall have to be set aside. Anything done under the unconstitutional law, whether closed, completed or inchoate, will be wholly illegal and the relief in one shape or another has to be given to the person affected by such unconstitutional law. Nor it is revived by any subsequent event.

This does not mean that the offending law is wiped out from the statute book altogether. It remains in operation as regards to persons who are not entitled to the fundamental rights in question (e.g., a non-citizen in respect of a right guaranteed by Art. 19). Nor does Cl. (2) authorize the Courts to interfere with the passing of a bill on the ground that it would, when enacted, be void for contravention of the Constitution. The jurisdiction of the Court arises when the bill is enacted into law.

DOCTRINE OF SEVERABILITY

It is not the whole Act which would be held invalid by being inconsistent with Part III of the Constitution but only such provisions of it which are violative of the fundamental rights, provided that the part which violates the fundamental rights is separable from that which does not isolate them. But if the valid portion is so closely mixed up with invalid portion that it cannot be separated without leaving an incomplete or more or less mingled remainder the court will declare the entire Act void. This process is known as doctrine of severability or reparability.

The Supreme Court considered this doctrine in ***A.K. Gopalan v. State of Madras, 1950 AIR 27***, and held that the preventive detention minus section 14 was valid as the omission of the Section 14 from the Act will not change the nature and object of the Act and therefore the rest of the Act will remain valid and effective. The doctrine was applied in ***D.S. Nakara v. Union of India, 1983 AIR 130***, where the Act remained valid while the invalid portion of it was declared invalid because it was severable from the rest of the Act. In ***State of Bombay v. F.N. Balsara, 1951 AIR 318***, it was held that the provisions of the Bombay Prohibition Act, 1949 which were declared as void did not affect the validity of the entire Act and therefore there was no necessity for declaring the entire statute as invalid.

The doctrine of severability has been elaborately considered by the Supreme Court and the following rules regarding the question of severability has been laid down:

(1) The intention of the legislature is the determining factor in determining whether the valid parts of a statute are severable from the invalid parts.

(2) If the valid and invalid provisions are so inextricably mixed up that they cannot be separated from the other, then the invalidity of a portion must result in the invalidity of the Act in its entirety. On the other hand, if they are so distinct and separate that after striking out what is invalid what remains is itself a complete code independent of the rest, then it will be upheld notwithstanding that the rest had become unenforceable.

(3) Even when the provisions which are valid, are distinct and separate from those which are invalid if they form part of a single scheme which is intended to be operative as a whole, then also the invalidity of a part will result in the failure of the whole.

(4) Likewise, when the valid and invalid parts of a Statute are independent and do not form part of a Scheme but what is left after omitting the invalid portion is so thin and truncated as to be in substance different from what it was when it emerged out of legislature, then also it will be rejected in its entirety.

(5) The severability of the valid and invalid provisions of a Statute does not depend on whether provisions are enacted in same section or different section, it is not the form but the substance of the matter that is material and that has to be ascertained on an examination of the Act as a whole and of the setting of the relevant provisions therein.

(6) If after the invalid portion is expunged from the Statute what remains cannot be enforced without making alterations and modifications therein, then the whole of it must be struck down as void as otherwise it will amount to judicial legislation.

(7) In determining the legislative intent on the question of severability, it will be legitimate to take into account the history of legislation, its object, the title and preamble of it.

Definition of Law Article 13 (3):

Art. 13(3)(a) defines 'law' very widely by an inclusive definition. It does not expressly include a law enacted by the legislature, for such an enactment is obviously law. The definition of law includes: (i) an Ordinance, because it is made in the exercise of the legislative powers of the executive; (ii) an order, bye-law, rule, regulation and notification having the force of law because ordinarily they fall in the category of subordinate delegated legislation and are not enacted by the legislature; (iii) custom or usage having the force of law because they are not enacted law at all. This extended definition appears to have been given to 'law' in order to forestall a possible contention that law can only mean law enacted by the legislature.

*** Applicability of Article 13 to a law for amendment of Constitution:**

Clause (4) was inserted by the Constitution (24th Amendment) Act, 1971, with effect from 5-11-1971, to override the view taken by Subha Rao, C.J., for the majority, in **Golak Nath v. State of Punjab, 1967 AIR 1643**, that a Constitution Amendment Act, passed according to Art. 368, is a 'law' within the meaning of

Art. 13 and would, accordingly, be void if it contravenes a fundamental right. This amendment was declared void in **Minerva Mill's v. Union of India, AIR 1980 SC 1789.**

Conclusion

The provisions of part III of the Constitution should not be treated as mere legal precepts. They form part of the conscience of the Constitution. It can safely be assumed that the framers intended the provisions to be instrumental in spreading a new constitutional culture. If we exclude the rapidly expanding private sector from the enforcement of these rights, this constitutional culture will have only a limited and truncated domain for its spread. After having argued for the enforcement of fundamental rights, it remains to sort out an incidental problem. It can be persuasively argued that the gist of the relevant fundamental rights can be enforced against the private sector by ordinary legislation instead of bringing the private sector directly within the purview of the Constitution. This argument can further be reinforced with the assertion that the suggestions made in the research paper would only result in further flooding the Supreme Court and high courts with writ petitions, thereby making the court system almost unworkable.

State through Constitution secures fundamental rights, help achieve ideals given in directive principles and expect citizens to perform certain fundamental duties. All these can only be done by the State, through the State and for the State respectively. Article 12 of the Constitution of India is of greatest importance as it defines what is State. Further, Article 13 of the Constitution of India specifies which acts of the State are regulated by the Constitution so that State does not abuse the powers given to it by the Constitution.

Q. Discuss the implication of the expressions "Equality before the Law" and "equal protection of the laws" as incorporated in the article 14 of the Constitution of India. What is meant by "reasonable classification"? Explain with the help of decided cases.

Article 14 of the constitution guarantee the right to equality to every citizen of India. It embodies the general principles of equality before law and prohibits unreasonable discrimination between persons. Article 14 embodies the idea of equality expressed in preamble.

ARTICLE 14- EQUALITY BEFORE LAW: Article 14 declares that 'the State shall not deny to any person equality before the law or equal protection of law within the territory of India.'. thus article 14 uses the two expressions "equality before law" and "equal protection of law". The phrase "equality before law" find a place in almost in written constitution that guarantees fundamental right both these expression. Both this expression aim at establishing what is called "equality of status" While both the expression are kind of identical but they don't give similar meaning.

EQUALITY BEFORE LAW: Its origin is from America. And somehow its negative concept. It aims at implying the absence of any special privilege by reason of birth, sex, religion etc in favor of individuals and the equal subject of all the classes to the ordinary law

EQUAL PROTECTION OF LAW: Its origin is from British. And somehow it is a positive concept. It aims at equality of treatment in equal circumstances. It means whether someone is P.M. or President he should be deal with same law as normal being deals with

RULE OF LAW: The guarantee of equality before the law is an aspect of what Dicey calls the Rule OF Law in England. It means that no man is above the law and that every person whatever be his rank or condition is subject to the jurisdiction of ordinary courts.

Rule of law require that no person shall be subjected to harsh, uncivilized or discriminatory treatment even when the object is the securing of the paramount exigencies* of law and order. Professor Dicey gave three meanings of the Rule Of Law

1. Absence of arbitrary power or supremacy of the law: It means the absolute supremacy of law as opposed to the arbitrary power of the Government. In other words-a man may be punished for a breach of law, but he can't be punish for anything else.

2. Equality before law: It means subjection of all classes to the ordinary law of land administrated by ordinary law courts. This means that no one is above law all are equal in eyes of law

3. Absence of individual liberty: There are various constitution that provide individual liberty but not provide method It means that the source of the right of individuals is not the written constitution. U.K. don't have provision for individual liberty.

Rule Of Law In India

1. Supremacy of Law: The First meaning of the Rule of Law is that 'no man is punishable or can lawfully be made to suffer in body or goods except for a distinct breach of law established in the ordinary legal manner before the ordinary courts of the land. It implies that a man may be punished for a breach of law but cannot be punished for anything else. No man can be punished except for a breach of law. An alleged offence is required to be proved before the ordinary courts in accordance with the ordinary procedure.

2. Equality before Law:- The Second meaning of the Rule of Law is that no man is above law. Every man whatever be his rank or condition is subject to the ordinary law of the realm and amenable to the jurisdiction of the ordinary tribunals. Everybody under Article 14 is equal before law and have equal protection.

3. Individual Liberty: lot of individual liberty is mention like fundamental right in Article 21- protection of life and personal liberty, article 19- Right to freedom etc. and courts are there to protect individual

liberty.

The first and second aspect apply to Indian system but the third aspect of the Dicey's rule of law does not apply to Indian system as the source of right of individuals is the constitution of India. The constitution is the supreme law of the land and all laws passed by the legislature must be consistent with provisions of the constitution.

The rule of law imposes a duty upon the state to take special measures to prevent and punish brutality by police methodology. The rule of law embodied in Article 14 is the basic feature of the Indian constitution and hence it can't be destroyed even by an amendment of the constitution under Article 368 of the constitution.

Exception To Rule OF Law: The above rule of equality is however not an absolute rule and there are number exceptions to it. 'Equality of Law' does not mean the power of the private citizens are the same as the power of the public officials. Thus, a police officer has the power to arrest you while no other private person has this power. This is not a violation of rule of law. But rule of law does require that these powers should be clearly defined by law and that abuse of authority by public officers must be punished by ordinary courts..

The rule of law does not prevent certain class of persons being subject to special rules. Thus, members of armed forces are controlled by military rules. Similarly medical practitioners are controlled by medical council of India.

Certain members of society are governed by special rules in their profession i.e. lawyers, doctors, nurses, members of armed forces and police. Such classes of people are treated differently from ordinary citizens.

Article 14 Permits Classification But Prohibits Class Legislation: The equal protection of laws guaranteed by Article 14 does not mean that all laws must be general in character. It does not mean that the same laws should apply to all persons. It does not attainment or circumstances in the same position. The varying needs of different classes of persons often requires separate treatment. From the very nature of society there should be different laws in different places and the legitimate controls the policy and enacts laws in the best interest of the safety and security of the state. In fact identical treatment in unequal circumstances would amount to inequality. So a reasonable classification is only not permitted but is necessary if society is to progress.

Thus what Article 14 forbids is class-legislation but it does not forbid reasonable classification. The classification however must not be "arbitrary, artificial or evasive" but must be based on some real and substantial bearing a just and reasonable relation to the object sought to be achieved by the legislation. Article 14 applies where equals are treated differently without any reasonable basis. But where equals and unequals are treated differently, Article 14 does not apply. Class legislation is that which makes an improper discrimination by conferring particular privileges upon a class of persons arbitrarily selected from a large number of persons all of whom stand in the same relation to the privilege granted that

between whom and the persons not so favored no reasonable distinction or substantial difference can be found justifying the inclusion of one and the exclusion of the other from such privilege.

Test Of Reasonable Classification: While Article 14 forbids class legislation it does not forbid reasonable classification of persons, objects, and transactions by the legislature for the purpose of achieving specific ends. But classification must not be “arbitrary, artificial or evasive”. It must always rest upon some real upon some real and substantial distinction bearing a just and reasonable relation to the object sought to be achieved by the legislation. Classification to be reasonable must fulfill the following two conditions.

Firstly the classification must be founded on the intelligible differentia which distinguishes persons or thing that are grouped together from others left out of the group.

Secondly the differentia must have a rational relation to the object sought to be achieved by the act. The differentia which is the basis of the classification and the object of the act are two distinct things. What is necessary is that there must be nexus between the basis of classification and the object of the act which makes the classification. It is only when there is no reasonable basis for a classification that legislation making such classification may be declared discriminatory. Thus the legislature may fix the age at which persons shall be deemed competent to contract between themselves but no one will claim that competency. No contract can be made to depend upon the stature or colour of the hair. Such a classification will be arbitrary.

*The true meaning and scope of Article 14 have been explained in a number of cases by the supreme court. In view of this the propositions laid down in **Dalmia case, AIR 1958 SC 538** still hold good governing a valid classification and are as follows.*

1. A law may be constitutional even though it relates to a single individual if on account of some special circumstances or reasons applicable to him and not applicable to others, that single individual may be treated as a class by itself
2. There is always presumption in favour of the constitutionality of a statute and the burden is upon him who attacks it to show that there has been a clear transgression of constitutional principles.
3. The presumption may be rebutted in certain cases by showing that on the fact of the statute, there is no classification and no difference peculiar to any individual or class and not applicable to any other individual or class, and yet the law hits only a particular individual or class.
4. It must be assumed that Legislature correctly understand and appreciates the need of its own people that its law are directed to problem made manifest by experience and that its discrimination are based on adequate grounds.
5. In order to sustain the presumption of constitutionality the court may take into consideration matters of common knowledge, matters of report, the history of the times and may assume every state of facts which can be conceived existing at the time of the legislation.

6. Thus, the legislation is free to recognize degrees of harm and may confine its restriction to those cases where the need is deemed to be the clearest.

7. While good faith and knowledge of the existing conditions on the part of a legislature are to be presumed, if there is nothing on the face of the law or the surrounding circumstances brought to the notice of the court on which the classification may reasonable be regarded as based, the presumption of constitutionality cannot be carried to extent always that there must be some undisclosed *and unknown reason for subjecting certain individuals or corporation to be hostile or discriminating legislation.

8. The classification may be made on different bases e.g. geographical or according to object or occupation or the like.

9. The classification made by the legislature need not be scientifically perfect or logically complete. Mathematical nicety and perfect equality are not required. Equality before the law does not require mathematical equality of all persons in all circumstances. Equal treatment does not mean identical treatment. Similarly, not identity of treatment is enough.

10. There can be discrimination both in the substantive as well as the procedural law. Article 14 applies to both. If the classification satisfies the test laid down in the above propositions, the law will be declared constitutional. The question whether a classification is reasonable and proper and not must however, be judged more on commonsense than on legal subtiles.

Ø **D.S. Nakara v. Union Of India, AIR 1983 SC 130:** The Government issued an office memorandum announcing a liberalized pension scheme for retired government servants but made it applicable to those who had retired after 31 March 1979. The supreme court held that the fixing of the cutoff date to be discriminatory as violating Article 14. The division of pensioners into two classes on the basis of the date of retirement was not based on any rational principle because a difference of two days in the matter of retirement could have a traumatic effect on the pensioner. Such a classification held to be arbitrary and unprincipled as there was no acceptable or persuasive reason in its favour. The said classification had no rational nexus with the object sought to achieved.

Ø **Madhu Limaye v. Supdt. Tihar Jail Delhi, AIR 1975 SC 1505:** There were Indian and European Prisoners. Both were treated differently. European gets better diet. Court held that difference between Indian and European prisoners in the matter of treatment and diet violates right to equality under Article 14 of Indian prisoners. They all are prisoners they must treat equally.

Ø **Sanaboina Satyanarayan v. Govt. of A.P:** In Andhra Pradesh. They formulate a scheme for prevention of crime against women. In prisons also prisoners were classify in to two category first Prisoners guilty of crime against women and second prisoners who are not guilty of crime against

women. Prisoners who are guilty of crime against women challenge the court saying that their right to equality is deprived. Court held that there is reasonable classification to achieve some objective.

Ø Tamil Nadu Electricity Board v R. Veeraswamy, 1999 (2) SCR 221: The employees were governed by the contributory provident fund scheme. With effect from 1-7-1986 a scheme was introduced. The question was whether the pension scheme ought to be applied to those who had already retired before the introduction of the pension scheme. The Supreme Court rejected the claim. As per the rules prevalent at the time the retirees had received all their retirement benefits. If the pension scheme was made applicable to all past retirees, the resulting financial burden would be Rs200 crore which would be beyond the capacity of employer. The reason given for introducing the scheme was financial constraint—a valid ground. The court held that retired employees and those who were in employment on 1-7-1986 can't be treated alike as they do not belong to one class. The workmen who had retired and received all the benefits under the contributory provident fund scheme cease to be employees of the appellant board w.e.f. the date of their retirement. They form a separate class. Thus there was no illegality in introducing the pension scheme and not making it applicable retrospectively to those who had retired before the date.

Conclusion

What Article 14 forbids is discrimination by law that is treating persons similarly circumstanced differently and treating those not similarly circumstanced in the same way or as has been pithily put treating equals as unequal and unequal as equals. Article 14 prohibits hostile classification by law and is directed against discriminatory class legislation.

A legislature for the purpose of dealing with the complex problem that arises out of an infinite variety of human relations cannot but proceed on some sort of selection or classification of persons upon whom the legislation is to operate.

It is well settled that Article 14 forbids classification for the purpose of legislation. It is equally well settled that in order to meet the test of Article 14.

(i) classification must be based on intelligible differentia which distinguishes persons or things that are grouped together from those that are left out of group and (ii) the differentia must have a rational nexus to the objects sought to be achieved by the executive or legislative action under challenge.

Article 14 contains a guarantee of equality before law to all persons and protection to them against discrimination by law. It forbids class legislation.

Q. Does the Indian Constitution guarantee equality of opportunity in matter of Public employment? If so, how?

INTRODUCTION: Right to Equality is one of the basic fundamental rights that the constitution of India guarantees to all the citizens of the country. Article 16 deals with the equality of opportunity in matters of public employment. Equal opportunity is a term which has differing definitions and there is no consensus as to the precise meaning. The constitution of India has given a wide interpretation to this article. Equal Employment Opportunity (EEO) principles apply to:

- Access to jobs
- Conditions of employment
- Relationships in the workplace
- The evaluation of performance and
- The opportunity for training and career development.

“Article 16 is an instance of the application of the general rule with special reference to opportunity of appointments under the State. It says that there shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State. If it stood alone all the backward communities would go to the wall in a society of uneven basic social structure; the said rule of equality would remain only an utopian conception unless a practical content was given to it... that is why the makers of the Constitution introduced clause (4) in Art. 16. The expression “nothing in this article” is a legislative device to express its intention in a most emphatic way that the power conferred there under is not limited in any way by the main provision but falls outside it. It has not really carved out an exception but has preserved a power untrammelled by the other provisions of the Article.

What Article 16 guarantees is equality of opportunity in matters of appointment in State services. Equality of opportunity connotes that every citizen shall be eligible for employment or appointment to any office under the State according to his qualifications and capability, as held in by the Supreme Court in **State of J. & K. v. K.V.N.T. Kholo**, AIR 1974 S.C. 1 Article 16 therefore does not prevent the State from prescribing the necessary qualifications and selective tests for recruitment of government services.

DETAILED DISCUSSION ON ARTICLE 16: Equality of opportunity in matters of public employment.-

- There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State. The rule applies only in respect of employments or offices which are held under the state. i.e., person holding office as subordinate to state. The clause accordingly, does not prevent the state from laying down the requisite qualifications for recruitment for government services, and it is open to the authority to lay down such other conditions of appointment as would be conducive to the maintenance of proper discipline among the servants. The qualification pointed may, besides mental excellence, include physical fitness, sense of discipline, moral integrity and loyalty to state. The expression ‘Matters relating

to employment and appointment' must include all matters in relation to employment both prior and subsequent to the employment which are incidental to the employment and form parts of the terms of the conditions of the such employment. Thus the guarantee in clause (1) will cover the (a) initial appointments, (b) Promotions, (c) Termination of employment, (d) Matters relating to the salary, periodical increments, leave, gratuity, pension, Age of superannuation etc. Principle of equal pay for equal work is also covered in section 16(1). In the light of the case of **M Thomas v State of Kerala, 1976 AIR 490** Justice V.R Krishna Iyer, rightly pointed out that the experience of reservation in practice showed that the benefits were, by and large, snatched away by the top creamy layer of the backward classes or classes, thus keeping the weakest amongst weak always weak and leaving the fortunate layers to consume the whole cake. Substantially lightened by the march of time, measures of better education and more opportunities of employment.

(2) No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State. The prohibited grounds of discussions are religion, race, caste, sex, descent, place of birth, residence, or any of them. The words, any employment or office under the State make it clear that Article 16(2) also applies only to public employment.

In **K.C. Vasanth Kumar v. State of Karnataka, AIR 1985 S.C. 1495**, the Supreme Court has suggested that the reservations in favor of backward classes must be based on mean test. It has been further suggested that the policy of reservations should be reviewed every five years or so and if a class has reached up to that level where it does not need reservation. Its name should be deleted from the list of backward classes.

Supreme Court in **Indira Sawhney & OR's v. Union of India, AIR 1993 SC 477**

1. Upheld Implementation of separate reservation for other backward classes in central government jobs.
2. Ordered to exclude Creamy layer of other backward classes from enjoying reservation facilities.
3. Ordered to restrict reservations within 50% limit.
4. Declared separate reservations for economically poor among forward castes as invalid.

(3) * Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office under the Government of, or any local or other authority within, a State or Union territory, any requirement as to residence within that State or Union territory prior to such employment or appointment. **M R Balaji v Mysore AIR 1963 SC 649** Court put 50% cap on reservations in almost all states except Tamil Nadu (69%, under 9th schedule) and Rajasthan (68% quota including 14% for forward castes, post gujjar violence 2008) has not exceeded 50% limit.

Tamil Nadu exceeded limit in 1980. Andhra Pradesh tried to exceed limit in 2005 which was again stalled by high court.

(4) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favor of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

The scope of Article 16 (4) was considered by the Supreme Court in **Devadasan v. Union of India, AIR 1964 S.C. 179**. In this case “carry forward rule” made by the Government to regulate appointment of persons of backward classes in government services was involved.

The Supreme Court struck down the “carry forward rule” as unconstitutional on the ground that the power vested in the government cannot be so exercised so as to deny reasonable equality of opportunity in matters of public employment for the members of classes other than backward classes. In this case reservation of posts to the members of backward classes had exceeded 50% and had gone up to 68% due to “carry forward rule.”

The Supreme Court held that each year of recruitment must be considered by itself and the reservation for each year should not be excessive so as to create monopoly or interfere unduly with the legitimate claims of the rest of the society. So the court held that reservation should be less than 50%, but how much less than 50% should depend upon the prevailing situations. **S. Rly. v. Rangachari AIR 1962 SC 36, State of Punjab v. Hiralal, 1970(3) SCC 567, Akhil Bharatiya Soshit Karamchari Sangh (Railway) v. Union of India, (1981) 1 SCC 246** Reservation of appointments or posts under Article 16(4) included promotions.

This was overruled in **Indira Sawhney & Ors v. Union of India AIR 1993 SC 477 : 1992 SCC 217** and held that Reservations cannot be applied in promotions.

(4A) Nothing in this article shall prevent the State from making Provision for reservation in matters of promotion, with consequential seniority, to any class or classes of posts in the services under the State in favor of the Scheduled Castes and the Scheduled Tribes which, in the opinion of the State, are not adequately represented in the services under the State. This clause does not affect the decision as regards other backward classes but makes it inapplicable to the scheduled castes and the scheduled tribes. Justifying reservations for the Scheduled castes and Scheduled Tribes candidates in promotion, the Court had at one point held that even their seniority acquired by promotion of the general class candidates could not be affected by subsequent promotion of the general class candidates. **S. Vinod kumar* vs. Union of India 1996 6 SCC 580** Relaxation of qualifying marks and standard of evaluation in matters of reservation in promotion was not permissible.

(4B) Nothing in this article shall prevent the State from considering any unfilled vacancies of a year which are reserved for being filled up in that year in accordance with any provision for reservation made under clause (4) or clause (4A) as a separate class of vacancies to be filled up in any succeeding

year or years and such class of vacancies shall not be considered together with the vacancies of the year in which they are being filled up for determining the ceiling of fifty per cent. Reservation on total number of vacancies of that year.

(5) Nothing in this article shall affect the operation of any law which provides that the incumbent of an office in connection with the affairs of any religious or denominational institution or any member of the governing body thereof shall be a person professing a particular religion or belonging to a particular denomination. *UOI v/s. S. Kalugasalamoorthy* held that when a person is selected on the basis of his own seniority, the scope of considering and counting him against reserved quota does not arise.

T.M.A. Pai Foundation v. State of Karnataka (2002) 8 SCC 481, P.A.Inamdar v. State of Maharashtra, 2005 AIR (SC) 3226

Supreme Court ruled that reservations cannot be enforced on Private Unaided educational institutions.

When is the reservation allowed to the backward class?

Other Backward Class (OBC) is a collective term used by the Government of India to classify castes which are educationally and socially disadvantaged. It is one of several official classifications of the population of India, along with Scheduled Castes and Scheduled Tribes (SCs and STs). The more important question is to what extent the affirmative action programmes based on irrelevant criteria such as caste and religion should be allowed to override merit and efficiency criteria.

Aristotle writes: "Injustice arises when equals are treated unequally and also when unequals are treated equally". Choosing the proper basis of distribution for making preference is not free from problems. It has been suggested that individual need, status, merit or entitlement are all in appropriate circumstances, proper bases of distribution of benefits.

In shedding light on the true content of equality of opportunity, Bernard Williams adds: "It requires not merely that there should be no exclusion from access on grounds other than those appropriate or rational for the good in question, but that the grounds considered appropriate for the good should themselves be such that people from all sections of society have an equal chance of satisfying them." In defining a "section of society", we cannot include sections of the population identified just by the characteristics which figure in the grounds for allocating the good since it will further exclude some section of the population. Everyone will agree that for getting admissions in a medical college – where seats are limited – merit is an appropriate criterion. Now, exclusion of potential candidates on grounds other than merit is prima facie denial of equality of opportunity.

In **Akhil Bharitaya Soshit Karamchari Sangh** it has been emphasized that the categorization of scheduled caste and scheduled tribes as a class on the basis of which the classification could be justified as just and reasonable within the meaning of Articles 15(1) and 16(1) because these classes stand on a substantially different footing from the rest of the Indian community in our Constitution. Other weaker section in this context, in his opinion would mean not other 'backward class' but dismally depressed

categories comparable economically and educationally to Scheduled Castes and Scheduled Tribes. In other words, in his opinion, classification of Scheduled castes and Scheduled tribes as a special category could be justified within the meaning of Article 15(1) and Article 16(1), whereas classification on the basis of backward classes may have to be confirmed on the basis of Article 15(4) and 16(4).

Are Articles 15(4) and 16(4) Exceptions?

On a plain reading of Articles 15 and 16 one is likely to form the impression that clause (4) of Article 15 is an exception to the rest of the provisions of that article and to clause (2) of Article 29 and that clause (4) of Article 16 is an exception to the rest of the provisions of that article. In other words, while clause (4) of Article 15 permits what the rest of that article or clause (2) of Article 29 prohibits, clause (4) of Article 16 permits what the rest of that article prohibits. This, indeed, was the initial impression of the Supreme Court also. This impression continued to rule until some of the judges in ***State of Kerala v. N.M. Thomas*** opined that clause (4) of Article 16 was not an exception to clause (1) or (2) of that article. This view in ***Thomas*** was reiterated, much more emphatically by Chinnappa Reddy, J. in his concurring opinion in ***A.B.S.K. Sangh v. Union of India, 1981 SCR (2) 185*** and it has finally been accepted by the Court in ***Indra Sawhney v. Union of India*** (the Mandal case). Thus clause (4) of Article 16 is not an exception to the rest of that article, but rather it is a facet of equality of opportunity guaranteed in clause (1) of that article and an effective method of realising and implementing it. Clause (4) does not derogate from anything in clauses (1) and (2) of Article 16 but rather gives them positive support and content. It serves the same function, i.e. securing of equality of opportunity, as do clauses (1) and (2). Obviously, therefore, it is as much a fundamental right as clauses (1) and (2) or any other provision of that article.

CONCLUSION:

The slogan “equality of opportunity” commands wide allegiance among the members of contemporary societies. Under scrutiny, equality of opportunity divides into several different ideals, some of them being opposed rivals. It is controversial which of these ideals, if any, are morally acceptable, and which, if any, should be coercively enforced. The ideal of a society in which people do not suffer disadvantage from discrimination on grounds of supposed race, ethnicity, religion, sex, sexual orientation is widely upheld as desirable in itself. For many, the ideal is more compelling than any argument that might be offered to support it as requirements of justice.

Q. Discuss the rights protected under Article 19(1) such as Freedom of Speech and Expression “with case law”. Discuss how these rights can be reasonably restricted.

Article 19(1) (a) (Freedom of Speech and Expression)

Article 19(1) (a) of the Constitution of India guarantees to all its citizens the right to freedom of speech and expression. The law states that, “all citizens shall have the right to freedom of speech and expression”. Under Article 19(2) “reasonable restrictions can be imposed on the exercise of this right for

certain purposes. Any limitation on the exercise of the right under Article 19(1) (a) not falling within the four corners of Article 19(2) cannot be valid.

The freedom of speech under Article 19(1) (a) includes the right to express one's views and opinions at any issue through any medium, e.g. **by words of mouth, writing, printing, picture, film, movie etc.** It thus includes the freedom of communication and the right to propagate or publish opinion. But this right is subject to reasonable restrictions being imposed under Article 19(2). Free expression cannot be equated or confused with a license to make unfounded and irresponsible allegations against the judiciary.

It is important to note that a restriction on the freedom of speech of any citizen may be placed as much by an action of the State as by its inaction. Thus, failure on the part of the State to guarantee to all its citizens irrespective of their circumstances and the class to which they belong, the fundamental right to freedom of speech and expression would constitute a violation of Article 19(1)(a).

The fundamental right to freedom of speech and expression is regarded as **one of the most basic elements of a healthy democracy for it allows its citizens to participate fully and effectively in the social and political process of the country.** In fact, the freedom of speech and expression gives greater scope and meaning to the citizenship of a person extending the concept from the level of basic existence to giving the person a political and social life.

This right is available only to a citizen of India and not to foreign nationals. This right is, however, not absolute and it allows Government to frame laws to impose reasonable restrictions in the interest of sovereignty and integrity of India, security of the state, friendly relations with foreign states, public order, decency and morality and contempt of court, defamation and incitement to an offence.

In the Preamble to the Constitution of India, the people of India declared their solemn resolve to secure to all its citizen liberty of thought and expression. The Constitution affirms the right to freedom of expression, which includes the right to voice one's opinion, the right to seek information and ideas, the right to receive information and the right to impart information. The Indian State is under an obligation to create conditions in which all the citizens can effectively and efficiently enjoy the aforesaid rights. In **Romesh Thappar v State of Madras (AIR 1950 SC 124)**, the Supreme Court of India held that the freedom of speech and expression includes freedom to propagate ideas which is ensured by freedom of circulation of a publication, as publication is of little value without circulation. **Patanjali Sastri, J.**, rightly observed that-

'Freedom of Speech and of Press is at the foundation of all democratic organizations, for without free political discussion no public education, so essential for the proper functioning of the process of Government, is possible'

However, Article 19(2) of the Constitution provides that this right is not absolute and 'reasonable restrictions' may be imposed on the exercise of this right for certain purposes. The right to freedom of

expression includes the right to express ones views and opinions on any issue and through any medium whether it be in writing or by word of mouth.

The phrase “speech and expression” used in Article 19(1) (a) has a broad connotation. **This right includes the right to communicate, print and advertise the information.** In India, **freedom of the press** is implied from the freedom of speech and expression guaranteed by Article 19(1)(a). The freedom of the press is regarded as a “**species of which freedom of expression is a genus**”. On the issue of whether ‘advertising’ would fall under the scope of the Article, the Supreme Court pointed out that the right of a citizen to exhibit films is a part of the fundamental right of speech and expression guaranteed by Article 19(1)(a) of the Constitution.

Indian law does not expressly refer to commercial and artistic speech. However, Indian Law is developing and the Supreme Court has ruled that ‘commercial speech’ cannot be denied the protection of Article 19(1)(a) of the Constitution. The Court has held that ‘commercial speech’ is a part of the ‘right of freedom of speech and expression’ as guaranteed by our Constitution. The citizens of India have the right to receive ‘commercial speech’ and they also have the right to read and listen to the same. This protection is available to the speaker as well as the recipient.[iv] Freedom of Speech and Expression also includes artistic speech as it includes the right to paint, sign, dance, write poetry, literature and is covered by Article 19(1)(a) because the common basic characteristic of all these activities is freedom of speech and expression.

Under the provisions of the Constitution of India, an individual as well as a corporation can invoke freedom of speech arguments and other fundamental rights against the State by way of a Writ Petition under Articles 32 and 226 of the Constitution of India subject to the State imposing some permissible restrictions in the interests of social control.

Under the provisions of Indian law, the right to invoke the freedom of speech arguments is not limited to individuals alone. Corporations are also entitled to invoke such arguments. The cases of **Bennet and Coleman & Co. v. Union of India (1973) 2 SCR 757** and **Indian Express Newspapers (Bombay) P. Ltd v. Union of India (1986) AIR, SC. 515**, are of great significance. In these cases, the corporations filed a writ petition challenging the constitutional validity of notifications issued by the Government. After much deliberation, the Courts held that the right to freedom of speech cannot be taken away with the object of placing restrictions on the business activities of citizens. However, the limitation on the exercise of the right under Article 19(1)(a) not falling within the four corners of 19(2) is not valid.

Article 19(1) (b) (Freedom of Assembly)

It guarantees to all citizens the right to assemble peacefully and without arms. It is a corollary of Article 19(1) (a). This right is not absolute but restricted. The assembly must be non-violent and must not cause any breach of public peace. If the assembly is disorderly or riotous then it is not protected under Article 19(1) (b) and reasonable restrictions may be imposed under article 19(3).

Article 19(1) (c) (Freedom to Form Association)

It guarantees the right to form associations. It includes the association of any kind- political, social or cultural. Further, it also means the right to join or not to join any association or right to continue or not to continue with the association.

(1) It gives rise to the right to form Trade Unions. It is a fundamental right of workers to form trade unions.

(2) The Supreme Court conferred that the Constitution does not recognizes the right to strike. It is a legal right but the strike must follow some rules. Workers can strike only after giving due notice.

(3) In **CPM Vs Bharat Kumar 1998** Case the Supreme Court stated that Bandh is illegal. Bandh (A general Stike) is illegal because it carries an element of aggression or compulsion. The compulsion of shutting down offices, shops and disturbance to public transport system, therefore violate a fundamental Right of citizen (Right to Freedom of movement). Moreover, bandh prevents the workers to earn their daily bread; therefore it violates the Right to Livelihood. It also violates the right to Freedom of Speech and expression.

(4) The Supreme Court held that the Hartal is not illegal. Because there is not any form of coercion involved not disturb normal life criticism.

(5) ESMA (Essential Services Maintenance Act)- The citizens involved in delivery of essential services cannot go on strike (Telecommunication, Administration etc.).

Right to form Association under Armed Forces Article 33 of the Constitution empowers the Parliament to pass a law restricting the right to form political association to:

(a) The members of the Armed Forces.

(b) The members of the Forces charged with or

(c) Persons employed in any bureau or other organization established by the State for purposes of intelligence or counter intelligence, or

(d) Persons employed in or connection with the telecommunication system.

Example: Police Forces (Restriction of Rights) Act, 1966, thus they do not have the right to form trade unions and hence not to go on strike.

Article 19(1) (d) (Freedom of Movement)

It guarantees to citizens the right to move freely throughout the territory of India. The word 'throughout' means no part of the country can be made inaccessible to the people of India. The word

freely means where ever one likes and however one likes. But these rights can be restricted on the ground of Security, Public order or for protecting the interests of the Scheduled Tribes.

Article 19(1) (e) (Freedom of Residence)

It is a corollary of Article 19(1)(d). It provides that the right to reside and settle down throughout the territory of India. This right is subject to certain reasonable restriction in the areas like the Scheduled areas or border areas.

Article 19(1) (g) (Freedom of Trade and Occupation)

It guarantees all citizens the right to choose any profession, occupation, trade or business. This right can be restricted by the State under Article 19(6) which includes:

- (i) Imposing reasonable restrictions in the interest of general public.
- (ii) Prescribe professional or technical qualifications necessary for carrying on any profession, trade or business to the exclusion of private citizens, wholly or partially.

First Amendment Act, 1951 – The right to freedom of Trade and occupation can be restricted by the State in law, in public interest whereby the state can take over a business or trade either completely or

LIMITATION

Most expression is completely harmless and protected under the right to freedom of expression from interference by the state.

However, 'seeking, receiving and imparting information or ideas' includes expression which few societies could tolerate, such as incitement to murder or the sale of pornography to children. As a result, freedom of expression is not absolute and can be limited when it conflicts with other rights.

International law declares freedom of expression to be the rule. Limitations are the exception, permitted only to protect:

- the rights or reputations of others
- national security
- public order
- public health
- morals.

Limitation is legitimate if it falls within the very narrow conditions defined in the three-part test in Article 19(3) of the ICCPR:

1. PROVIDED BY LAW

The right to freedom of expression cannot be limited at the whim of a public official. They must be applying a law or regulation that is formally recognised by those entrusted with law making.

The law or regulation must meet standards of clarity and precision so that people can foresee the consequences of their actions. Vaguely worded edicts, whose scope is unclear, will not meet this standard and are therefore not legitimate. For example, vague prohibitions on 'sowing discord in society' or 'painting a false image of the State' would fail the test.

The rationale

- It is only fair that people have a reasonable opportunity to know what is prohibited, so that they can act accordingly
- A situation where officials can make rules on a whim is undemocratic. Decisions limiting human rights must be made by bodies representing the will of people
- Vague laws will be abused. They often give officials discretionary powers that leave too much room for arbitrary decision-making
- Vague laws have a 'chilling effect' and inhibit discussion on matters of public concern. They create a situation of uncertainty about what is permitted, resulting in people steering far clear of any controversial topic for fear that it may be illegal, even if it is not.

2. LEGITIMATE AIM

There must be a legitimate aim to limit the right to freedom of expression. The list of legitimate aims is not open-ended. They are provided for in Article 19(3) of the ICCPR: '...respect for the rights and reputations of others, and protection of national security, public order (ordre public), public health or morals'. They are exclusive and cannot be added to.

The rationale

- Not all the motives underlying governments' decisions to limit freedom of expression are compatible with democratic government. For example, a desire to shield a government from criticism can never justify limitations on free speech
- * The aim must be legitimate in purpose and effect. It is not enough for a provision to have an incidental effect on one of the legitimate aims. If the provision was created for another reason, it will not pass this part of the test.

3. NECESSITY

Any limitation of the right to freedom of expression must be truly necessary. Even if a limitation is in accordance with a clear law and serves a legitimate aim, it will only pass the test if it is truly necessary for the protection of that legitimate aim. If a limitation is not needed, why impose it?

In the great majority of cases where international courts have ruled national laws to be impermissible limitations on the right to freedom of expression, it was because they were not deemed to be 'necessary'.

The rationale

- A government must be acting in response to a pressing social need, not merely out of convenience. On a scale between 'useful' and 'indispensable', 'necessary' should be close to 'indispensable'
- A government should always use a less intrusive measure if it exists and would accomplish the same objective. For example, shutting down a newspaper for defamation is excessive; a retraction (or perhaps a combination of a retraction and a warning or a modest fine) would offer the victim of defamation adequate protection
- The measure must impair free expression as little as possible. It should not restrict in a broad or untargeted way, as that could interfere with legitimate expression. For example, it is too broad to ban all discussion about a country's armed forces in order to protect national security
- The impact of the measure must be proportionate and the harm that it causes to free expression must not outweigh its benefits. For example, a limitation that provides only partial protection to someone's reputation but seriously undermines free expression is disproportionate
- A court must take into account all of the circumstances at that time before deciding to limit freedom of expression. For example, it could be legitimate to limit freedom of expression for national security reasons during a conflict but not during peacetime
- The European Convention on Human Rights (ECHR) narrows the third test by requiring limitations to be 'necessary in a democratic society'. This wording is preferable as it clarifies that the purpose of the limitation must never be to shield governments from either criticism or peaceful opposition.

Q. Explain and elucidate the "Doctrine of Ex Post Facto Laws" as provided for article 20(1) of the Constitution of India. Explain doctrine of double jeopardy. What are the provisions in the constitution of India regarding "Prohibition against self incrimination" ?

An ***ex post facto*** law (Latin for "from after the action" or "after the facts") is a law that retroactively changes the legal consequences (or status) of actions that were committed, or relationships that existed, before the enactment of the law. In criminal law, it may criminalize actions that were legal when committed; it may aggravate a crime by bringing it into a more severe category than it was in when it was committed; it may change the punishment prescribed for a crime, as by adding new penalties or extending sentences; or it may alter the rules of evidence in order to make conviction for a crime likelier than it would have been when the deed was committed. Conversely, a form of *ex post facto* law commonly called an amnesty law may decriminalize certain acts. A pardon has a similar effect, in a specific case instead of a class of cases. Other legal changes may alleviate possible punishments (for example by replacing the death sentence with lifelong imprisonment) retroactively. Such legal changes are also known by the Latin term ***in mitius***.

A law may have an *ex post facto* effect without being technically *ex post facto*. For example, when a previous law is repealed or otherwise nullified, it is no longer applicable to situations to which it had been, even if such situations arose before the law was voided. The principle of prohibiting the continued application of such laws is called *nullum crimen, nulla poena sine praevia lege poenali* especially in European Continental systems. This is related to the principle of legality.

Some common-law jurisdictions do not permit retroactive criminal legislation, though new precedent generally applies to events that occurred before the judicial decision. *Ex post facto* laws are expressly forbidden by the United States Constitution in Article 1, Section 9, Clause 3 (with respect to federal laws) and Article 1, Section 10 (with respect to state laws). In some nations that follow the Westminster system of government, such as the United Kingdom *ex post facto* laws are technically possible, because the doctrine of parliamentary supremacy allows Parliament to pass any law it wishes. In a nation with an entrenched bill of rights or a written constitution, *ex post facto* legislation may be prohibited.

In India, without using the expression "Ex post facto law", the underlying principle has been adopted in the Article 20 (1) of the Indian Constitution in the following words:

"No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which have been inflicted under the law in force at the time of commission of the offence."

Further, what Art. 20(1) prohibits is conviction and sentence under an *ex post facto* law for acts done prior thereto, but not the enactment or validity of such a law. There is, thus, a difference between the Indian and the American positions on this point, whereas in America, an *ex post facto* law is in itself invalid, it is not so in India. The courts may also interpret a law in such a manner that any objection against it of retrospective operation may be removed.

An example for retrospective law in India is the Karnataka Schedule Caste and Scheduled Tribes (Prohibition of Transfer of Certain Lands) Act, 1978 in the state of Karnataka.

DOCTRINE OF DOUBLE JEOPARDY

Fundamental right which is guaranteed under Article 20(2) of Constitution of India incorporates the principles of “autrefois convict” or Double jeopardy which means that person must not be punished twice for the offence. Doctrine against Double Jeopardy embodies in English common law’s maxim ‘nemo debet bis vexari, si constat curice quod sit pro una iti eadem causa’ (no man shall be punished twice, if it appears to the court that it is for one and the same cause). It also follows the “audi alterum partem rule” which means that no person can be punished for the same offence more than ones. And if a person is punished twice for the same offence it is termed Double jeopardy.

Meaning of Jeopardy: The word Jeopardy refers to the “danger” of conviction that an accused person is subjected to when one trial for an criminal offence.

Meaning of Double Jeopardy: The act of putting a person through a second trial of an offence for which he or she has already been prosecuted or convicted.

This means that if a person is prosecuted or convicted ones cannot be punished again for that criminal act. And if a person is indicated again for the same offence in the court then he has the plea of Double Jeopardy as a valid defense.

Indian Law And Double Jeopardy: The Double Jeopardy principle was existed in India prior to the enforcement of the Constitution of India. It was enacted under in section 26. Section 26 states that “provision as to offences punishable under two or more enactments,- where an act or omission constitutes an offence under two or more enactments, then the offender shall be liable to be prosecuted or punished under either or any of those enactments, but shall not be liable to be punished twice for the same offence.

And section 403(1) of (the old) CrPC,1898 (Section 300 of the amended Criminal Procedure Code,1973) , which states, 300(1) a person who has once been tried by a court of competent jurisdiction for an offence and convicted or acquitted of offence shall, while such conviction or acquittal remains in force, not to be liable to be tried again for the same offence, nor on the same facts for any other offence for which a different charge from the one made against him might have been under sub- section (1) of the section 221 or for sub-section (2) thereof. It is to be noted that, the Code of Criminal procedure recognize both the pleas of autrefois acquit as well as autrefois convict. The conditions which should be satisfied for raising either of the plea under the Code are: firstly; that there should be previous conviction or acquittal, secondly; the conviction or acquittal must be by a court of competent jurisdiction, and thirdly; the subsequent proceeding must be for the same offence. The expression “same offence” shows that the offence for which the accused shall be tried and the offence for which he is again being tried must be identical, and based on the same set of facts.

Section 71 of IPC runs as- limits of punishment of offence made up of several offences where anything which is an offence is made up of parts is itself an offence, the offender shall not be punished of more than one of such his offences, unless it be so expressly provided.

III. Constitutional Implication: In Constitution of India, Double Jeopardy is incorporated under Article 20(2) and it is one of fundamental right of the Indian Constitution. And the features of fundamental rights have been borrowed from U.S. Constitution and the concept of Double Jeopardy is also one of them. Principle of Double Jeopardy is incorporated into the U.S. Constitution in the Fifth Amendment, which says that “no person shall be twice put in Jeopardy of life or limb.”

Article 20 of the Indian Constitution provides protection in respect of conviction for offences, and article 20(2) contains the rule against double jeopardy which says that “no person shall be prosecuted or punished for the same offence more than once.” The protection under clause (2) of Article 20 of Constitution of India is narrower than the American and British laws against Double Jeopardy.

Under the American and British Constitution the protection against Double Jeopardy is given for the second prosecution for the same offence irrespective of whether an accused was acquitted or convicted in the first trial. But under Article 20(2) the protection against double punishment is given only when the accused has not only been ‘prosecuted’ but also ‘punished’, and is sought to be prosecuted second time for the same offence. The use of the word ‘prosecution’ thus limits the scope of the protection under clause (1) of Article 20. If there is no punishment for the offence as a result of the prosecution clause (2) of the article 20 has no application and an appeal against acquittal, if provided by the procedure is in substance a continuance of the prosecution.

IV. Can Different Charge Is Laid For The Same Action Or Same Offence: Doctrine against Double Jeopardy in Constitution of India, Article 20(2) says that ‘no person shall be prosecuted and punished for the same offence more than once.’ But it is subjected to certain restrictions. And it is to be noted that Article 20(2) of Constitution of India does not apply to a continuing offence.

There are some examples of cited cases mentioned below which throw light on the above question:

In **Venkataraman v. Union of India, 1954 SCR 1150** An enquiry was made before the enquiry commissioner on the appellant under the Public Service Enquiry Act, 1960 & as a result, he was dismissed from the service. He was later on, charged for committed the offence under Indian Penal Code & the Prevention of Corruption Act. The court held that the proceeding held by the enquiry commissioner was only a mere enquiry & did not amount to a prosecution for an offence. Hence, the second prosecution did not attract the doctrine of Double Jeopardy or protection guaranteed under Fundamental Right Article 20 (2).

It is to be noted that Article 20 (2) will applicable only where punishment is for the same offence, In **Leo Roy v. Superintendent District Jail, 1958 SCR 822**, The Court held: if the offences are distinct the rule of Double Jeopardy will not apply. Thus, where a person was prosecuted and punished under sea customs

act, and was later on prosecuted under the Indian Penal Code for criminal conspiracy, it was held that second prosecution was not barred since it was not for the same offence.

In **Roshan Lal & ors v. State of Punjab, 1965 SCR (2) 316**, The accused had disappeared the evidence of two separate offences under section 330 & section 348 Indian Penal Code. So, it was held by the court that the accused was liable to be convicted for two separate sentences.

In this case, the appellants were charged under section 409 IPC & Section 5 of the prevention of Corruption Act, 1947 for making false panchnama in which they have shown recovery of 90 gold biscuits while according to the prosecution case, they had recovered 99 gold biscuits. The appellants were tried for the same & acquitted. The appellants were again tried for the offence under section 120-B of Indian Penal Code, Section 135 & 136 of the Customs Act, Section 85 of the Gold (control) Act & Section 23(1-A) of FERA and Section 5 of Import Export (control) Act, 1947. The validity of the subsequent prosecution was challenged by the appellant by the appellant on the ground that it contravened the constitutional guaranteed embodied in Article 20(2). The court held: "After giving our careful consideration to the facts and circumstances of the case and the submissions made by the learned counsel for the respective parties, it appears to us that the ingredients of the offences for which the appellants were charged in the first trial are entirely different. The second trial with which we are concerned in this appeal, envisages a different fact- situation and the enquiry for finding out constituting offences under the Customs Act and the Gold (Control) Act in the second trial is of a different nature. Not only the ingredients of offences in the previous and the second trial are different, the factual foundation of the first trial and such foundation for the second trial is also not indented (sic). Accordingly, the second trial was not barred under Section 403 CrPC OF 1898 as alleged by the appellants."

In **Union of India & Anr. v. P.D. Yadav**, In this case, the pension of the officer, who was convicted by a Court-Martial, had been forfeited. The court held: "This principle is embodied in the well-known maxim *nemo debet bis vexari si constat curiae quod sit pro una et eadem causa*, meaning no one ought to be vexed twice if it appears to the court that it is for one and the same cause. Doctrine of Double Jeopardy is a protection against prosecution twice for the same offence. Under Article 20-22 of the Indian Constitution, provisions are made relating to personal liberty of citizens and others offences such as criminal breach of trust, misappropriation, cheating, defamation etc., may give rise to prosecution on criminal side and also for action in civil court/ other forum for recovery of money by way of damages etc., unless there is a bar created by law. In the proceedings before General Court Martial, a person is tried for an offence of misconduct and whereas in passing order under Regulation 16 (a) for forfeiting pension, a person is not tried for the same offence of misconduct after the punishment is imposed for a proven misconduct by the General Court Martial resulting in cashiering, dismissing or removing from service. Only further action is taken under Regulation 16 (a) are entirely different. Hence, there is no question of applying principle of Double Jeopardy to the present cases."

In **Jitendra Panchal v. Intelligence Officer N.C.B.**, 17th October, 2002, officers of the US Drug Enforcement Agency, along with officers of the Narcotics Bureau, India, seized a consignment of 1243

pounds equivalent to 565.2 Kgs. of Hashish in Newark, USA. During the investigation, it appears to have transpired that one Niranjn Shah and the appellant were engaged in trafficking Hashish out of India into the USA and Europe and that the seized contraband had been smuggled out of India by the appellant and the said Niranjn Shah along with one Kishore. The appellant was arrested in Vienna in Austria by officers of the Drug Enforcement Agency, USA on 5th December, 2002 and was extradited to the USA. Soon, thereafter, on 25th March, 2003, the Deputy Director General of the Narcotics Control Bureau, hereinafter referred as 'the NCB', visited the USA and recorded the appellant's statement. Subsequently, on 9th April, 2003, officers of the NCB arrested Niranjn Shah, Kishore Joshi and Irfan Gazali in India and prosecution was launched against them in India. On 5th September, 2003, a complaint was filed by the NCB before the learned Special Judge, Mumbai, against Niranjn Shah, Kishore Joshi and two others under Sections 29/20/23/27A/24 read with Section 8(c)/12 of the Narcotic Drugs and Psychotropic Substances Act, 1985, hereinafter referred to as 'the NDPS Act', in connection with the above-mentioned incident. While the said Niranjn Shah and others were being proceeded with before the learned Special Judge in Mumbai, the appellant, who had been extradited to the USA, was tried before the District Court at Michigan, USA, On pleading guilty of the charge of conspiracy to possess with intention to distribute controlled substances, which is an offence under USC Controlled Substances Act, the appellant was sentenced to imprisonment on 27th June, 2006, for a total term of 54 months. After serving out the aforesaid sentence, the appellant was deported to India on 5th April, 2007, and on his arrival at New Delhi, he was arrested by officers of the NCB and was taken to Mumbai and on 10th April, 2007, he was produced before the learned Chief Metropolitan Magistrate and was remanded to judicial custody. At this juncture, it may be indicated that although the appellant could have been prosecuted for other offences under Title 21 USC, the other charges against the appellant were dropped as he had pleaded guilty to the offence of conspiring to possess controlled substances. On 25th April, 2007, on the appellant's application that the proceedings against the appellant in India would amount to double jeopardy, the learned Special Judge, Mumbai, rejected the appellant's contention upon holding that the charges which had been dropped against the appellant in the proceedings in the USA had not been dealt with while imposing sentence against him in the District Court of Michigan, USA. The Special Judge extended the judicial custody of the appellant and subsequently rejected his prayer for bail on 17th May, 2007.

Conclusion

The rule against Double Jeopardy stipulates that no one may be put in peril twice for the same offence. It is a concept originated from "Natural Justice System" for the protection of integrity of the "Criminal Justice System". The concept of Double Jeopardy follows the "audi altermn partum rule" which means a person cannot be punished twice for the same offence. But it is to be noted that there are some restrictions too in the Indian laws related to Double Jeopardy.

In **The State of Bombay v. S.L. Apte and anr., 1961 SCR (3) 107**, The Constitution Bench of this Court while dealing with the issue of double jeopardy under Article 20(2), held: "To operate as a bar the second prosecution and the consequential punishment there under, must be for "the same offence".

The crucial requirement therefore for attracting the Article is that the offences are the same i.e. they should be identical. If, however, the two offences are distinct, then notwithstanding that the allegations of facts in the two complaints might be substantially similar, the benefit of the ban cannot be invoked. It is, therefore, necessary to analyze and compare not the allegations in the two complaints but the ingredients of the two offences and see whether their identity is made out. The next point to be considered is as regards the scope of Section 26 of the General Clauses Act. Though Section 26 in its opening words refers to “the act or omission constituting an offence under two or more enactments”, the emphasis is not on the facts alleged in the two complaints but rather on the ingredients which constitute the two offences with which a person is charged. This is made clear by the concluding portion of the section which refers to “shall not be liable to be punished twice for the same offence”. If the offences are not the same but are distinct, the ban imposed by this provision also cannot be invoked.”

Here, my opinion is that, there is a need of active participation of Judges; they have to keep in mind of those offences which constitute the same offence & those too which do not. But it is clear in the study that if a person has been prosecuted for an offence but acquitted, then only he can be prosecuted for the same offence again & punished.

PROTECTION AGAINST SELF INCRIMINATION

Clause (3) of Article 20 of the Indian Constitution, 1950 provides that “No person accused of any offence shall be compelled to be a witness against himself.” This principle is espoused on the maxim “*nemo tenetur prodre accusare seipsum*”, which essentially means “**NO MAN IS BOUND TO ACCUSE HIMSELF.**”

The Fundamental Right guaranteed under Article 20(3) is a protective umbrella against testimonial compulsion for people who are accused of an offence and are compelled to be a witness against themselves. The provision borrows from the *Fifth Amendment* of the American Constitution which lays down that, “*No person shall be compelled in any criminal case to be a witness against himself*”, same as mentioned in the Constitution of India embodying the principles of both English and American Jurisprudence. This libertarian provision can be connected to an essential feature of the Indian Penal Code based on the lines of Common Law that, “*an accused is innocent until proven guilty*” and the burden is on the prosecution to establish the guilt of the accused; and that the accused has a right to remain silent which is subject to his much broader right, against self-incrimination.

The tendency of Indian legal system manifests skepticism of the police system. This is the reason confessions of an accused is only admissible if recorded by a Magistrate in accordance with an elaborate procedure to ensure that they are made voluntarily. Protection is also accorded by the provisions of The Indian Evidence Act. This protection is available to every person including not only individuals but also companies and incorporated bodies.

This clause gives protection only if the following ingredients are present:

1. It is a protection available to a person **accused** of an offence;
2. It is a protection against compulsion to be a **witness against oneself**; and
3. It is a protection against such “**Compulsion**” as resulting in his giving evidence against himself.

PERSON ACCUSED OF AN OFFENCE

A person accused of an offence means a “person against whom a formal accusation relating to the commission of an offence has been leveled, which may result in prosecution”. Formal accusation in India can be brought by lodging of an F.I.R or a formal complaint, to a competent authority against the particular individual accusing him for the commission of the crime.

It is only on making of such formal accusation that Clause (3) of Article 20 becomes operative covering that person with its protective umbrella against testimonial compulsion. It is imperative to note that, “*a person cannot claim the protection if at the time he made the statement, he was not an accused but becomes an accused thereafter.*” Article 20 (3) does not apply to departmental inquiries into allegations against a government servant, since there is no accusation of any offence within the meaning of Article 20 (3).

Self-incrimination has been extensively discussed in the case of **Nandini Satpathy v. P.L Dani 1978 SCR (3) 608**. In this case, the appellant, a former Chief Minister of Orissa was directed to appear at Vigilance Police Station, for being examined in connection to a case registered against her under the Prevention of Corruption Act, 1947 and under S. 161/165 and 120-B and 109 of The Indian Penal Code, 1860. Based on this an investigation was started against her and she was interrogated with long list of questions given to her in writing. She denied to answer and claimed protection under Article 20(3). The Supreme Court ruled that the objective of Article 20(3) is to protect the accused from unnecessary police harassment and hence it extends to the stage of police investigation apart from the trial procedure.

Further, this right to silence is not limited to the case for which the person is being examined but also extends to other offences pending against him, which may have the potential of incriminating him in other matters. It was also held that the protection could be used by a suspect as well.

PROTECTION AGAINST COMPULSION TO BE A WITNESS

The protection contained in Article 20(3) is against compulsion “to be a witness” against oneself. In **M.P Sharma v. Satish Chandra, 1954 SCR 1077**, the Supreme Court gave a wide interpretation of the expression “to be a witness” which was inclusive of oral, documentary and testimonial evidence. The Court also held that the protection not only covered testimonial compulsion in the Court room but also included compelled testimony previously obtained from him.

To be a witness — Furnishing Evidence: In *M.P Sharma’s case* it was held that, Article 20 (3) was directed against self-incrimination by the accused person. Self-incrimination must mean conveying

information based upon the personal knowledge of the person giving the information and cannot include merely the mechanical process of producing documents in the Court.

Exception: It follows that giving thumb impressions, or impression of foot or palm or fingers or specimens of writings or exposing body for the purpose of identification are not covered by the expression 'to be a witness' under Article 20(3).

The Court distinguished 'to be a witness' from 'furnishing evidence', and interpreted the former to mean imparting knowledge in respect of relevant facts by an oral statement or statement in writing made or given in court or otherwise. The latter included production of documents or giving materials which might be relevant at a trial to determine the guilt or innocence of the accused.

ANALYSIS: Thus, self-incrimination in context of Article 20(3) only means conveying information based upon personal knowledge of the person giving information. But where an accused is compelled to produce a document in his possession which is not based on the personal knowledge of the accused, in such a case there is no violation of Article 20(3).

Searches & Seizures

In *V.S Kuttan Pillai v. Ramakrishnan, 1980 SCR (1) 673*, the Supreme Court held that search of the premises occupied by the accused without the accused being compelled to be a party to such a search would not be violative of the constitutional guarantee enshrined in Article 20(3).

Section 27 of The Indian Evidence Act, 1872: S.27 of the Indian Evidence Act, 1872, provides that during investigation when the discovery of evidence by the police is led by some fact that was disclosed by the accused then so much of the information as relates to the facts discovered, may be proved irrespective of the fact whether that information amounts to a confession or not. It was held that the provisions of this section are not prohibited within the scope of Article 20(3) unless compulsion had been used in obtaining the information.

COMPULSION TO GIVE EVIDENCE "AGAINST HIMSELF"

The protection under Article 20(3) is available only **against compulsion** of the accused to give evidence against himself. Thus, if the accused voluntarily makes an oral statement or voluntarily produces documentary evidence, incriminatory in nature, Article 20(3) would not be attracted.

The term compulsion under Article 20(3) means 'duress'. Thus, compulsion may take many forms. If an accused is beaten, starved, tortured, harassed etc. to extract a confession out of him/her then protection under Article 20(3) can be sought. A case at hand would be *Mohd. Dastagir v. State of Madras, 1960 SCR (3) 116*, where the appellant went to the residence of the Deputy Superintendent of Police and handed him an envelope. On opening the envelope, the DSP found cash in it, which meant that the appellant had come to offer bribe to the officer. The DSP refused it and asked the appellant to place the envelope and the notes on the table, and he did as told, after which the cash was seized by the

Police. In this case the Supreme Court held that, the accused wasn't compelled to produce the currency notes as no duress was applied on him. Moreover the appellant wasn't even an accused at the time the currency notes were seized from him. Hence in this case the scope of Article 20(3) was not applicable.

Tape Recording of statements made by the accused

If statements recorded are made by the accused, without any duress, with or without his knowledge are not hit by Article 20(3).

Q. "No person shall be deprived of his life or personal liberty except according to procedure established by law"- Discuss with case laws.

Article 21 of the Constitution of India, a very familiar fundamental right, applicable to all persons under Part III of the Constitution of India. Meaning of term "life" is defined in *Munn v. Illinois*, 94 US 11, **Field, J.** spoke of the right to life in the following words:

"By the term 'life' as here used something more is meant than mere animal existence. The inhibition against its deprivation extends to all those limbs and faculties by which life is enjoyed. The provision equally prohibits the mutilation of the body by the amputation of an arm or leg, or the putting out of an eye, or the destruction of any other organ of the body through which the soul communicates with outer world."

This article applies to even non-citizen of India. The Supreme Court has emphasized that even those who come to India as tourists also –

"have right to live, so long as they are here, with human dignity, just as the State is under an obligation to protect the life of every citizen in this country, so also the State is under an obligation to protect the life of the persons who are not citizen." (**Chairman, Railway Board v. Chandrima Das**, AIR 2000 SC 988)

ARTICLE 21: PROTECTS LIFE AND PERSONAL LIBERTY

'Everyone has the right to life, liberty and the security of person.' The right to life is undoubtedly the most fundamental of all rights. All other rights add quality to the life in question and depend on the pre-existence of life itself for their operation. As human rights can only attach to living beings, one might expect the right to life itself to be in some sense primary, since none of the other rights would have any value or utility without it. There would have been no Fundamental Rights worth mentioning if Article 21 had been interpreted in its original sense. This Section will examine the right to life as interpreted and applied by the Supreme Court of India.

Article 21 of the Constitution of India, 1950 provides that, "No person shall be deprived of his life or personal liberty except according to procedure established by law." 'Life' in Article 21 of the Constitution is not merely the physical act of breathing. It does not connote mere animal existence or

continued drudgery through life. It has a much wider meaning which includes right to live with human dignity, right to livelihood, right to health, right to pollution free air, etc. Right to life is fundamental to our very existence without which we cannot live as human being and includes all those aspects of life, which go to make a man's life meaningful, complete, and worth living. It is the only article in the Constitution that has received the widest possible interpretation. Under the canopy of Article 21 so many rights have found shelter, growth and nourishment. Thus, the bare necessities, minimum and basic requirements that is essential and unavoidable for a person is the core concept of right to life.*

In the case of **Kharak Singh v. State of Uttar Pradesh, AIR 1963 SC 1295**, the Supreme Court quoted and held that: By the term "life" as here used something more is meant than mere animal existence. The inhibition against its deprivation extends to all those limbs and faculties by which life is enjoyed. The provision equally prohibits the mutilation of the body by amputation of an arm or leg or the pulling out of an eye, or the destruction of any other organ of the body through which the soul communicates with the outer world.

In **Sunil Batra v. Delhi Administration, AIR 1978 SC 1675** the Supreme Court reiterated with the approval the above observations and held that the "right to life" included the right to lead a healthy life so as to enjoy all faculties of the human body in their prime conditions. It would even include the right to protection of a person's tradition, culture, heritage and all that gives meaning to a man's life. It includes the right to live in peace, to sleep in peace and the right to repose and health.

Right To Live with Human Dignity

In **Maneka Gandhi v. Union of India, 1978 AIR 597, 1978 SCR (2) 621** the Supreme Court gave a new dimension to Art. 21 and held that the right to live is not merely a physical right but includes within its ambit the right to live with human dignity. Elaborating the same view, the Court in **Francis Coralie v. Union Territory of Delhi, 1981 AIR 746, 1981 SCR (2) 516** observed that: *"The right to live includes the right to live with human dignity and all that goes along with it, viz., the bare necessities of life such as adequate nutrition, clothing and shelter over the head and facilities for reading writing and expressing oneself in diverse forms, freely moving about and mixing and mingling with fellow human beings and must include the right to basic necessities the basic necessities of life and also the right to carry on functions and activities as constitute the bare minimum expression of human self."*

Another broad formulation of the theme of life to dignity is to be found in **Bandhua Mukti Morcha v. Union of India, 1984 SCR (2) 67**. Characterizing Art. 21 as the heart of fundamental rights, the Court gave it an expanded interpretation. Bhagwati J. observed:

"It is the fundamental right of everyone in this country... to live with human dignity free from exploitation. This right to live with human dignity enshrined in Article 21 derives its life breath from the Directive Principles of State Policy and particularly clauses (e) and (f) of Article 39 and Articles 41 and 42 and at the least, therefore, it must include protection of the health and strength of workers, men and women, and of the tender age of children against abuse, opportunities and facilities for children to

develop in a healthy manner and in conditions of freedom and dignity, educational facilities, just and humane conditions of work and maternity relief. These are the minimum requirements which must exist in order to enable a person to live with human dignity and no State neither the Central Government nor any State Government-has the right to take any action which will deprive a person of the enjoyment of these basic essentials."

Following the above stated cases, the Supreme Court in **Peoples Union for Democratic Rights v. Union of India, 1983 SCR (1) 456**, held that non-payment of minimum wages to the workers employed in various Asiad Projects in Delhi was a denial to them of their right to live with basic human dignity and violative of Article 21 of the Constitution. Bhagwati J. held that, rights and benefits conferred on workmen employed by a contractor under various labour laws are clearly intended to ensure basic human dignity to workmen. He held that the non-implementation by the private contractors engaged for constructing building for holding Asian Games in Delhi, and non-enforcement of these laws by the State Authorities of the provisions of these laws was held to be violative of fundamental right of workers to live with human dignity contained in Art. 21.

In **Chandra Raja Kumar v. Police Commissioner Hyderabad, IR 1998 AP 302**, it has been held that the right to life includes right to life with human dignity and decency and, therefore, holding of beauty contest is repugnant to dignity or decency of women and offends Article 21 of the Constitution only if the same is grossly indecent, scurrilous, obscene or intended for blackmailing. The government is empowered to prohibit the contest as objectionable performance under Section 3 of the Andhra Pradesh Objectionable Performances Prohibition Act, 1956.

In **State of Maharashtra v. Chandrabhan, 1983 SCR (3) 327**, the Court struck down a provision of Bombay Civil Service Rules, 1959, which provided for payment of only a nominal subsistence allowance of Re. 1 per month to a suspended Government Servant upon his conviction during the pendency of his appeal as unconstitutional on the ground that it was violative of Article 21 of the Constitution

RIGHT TO LIFE EXTENDS TO LIVELIHOOD

In 1960, the Apex Court was of the view that Article 21 of Indian Constitution does not guarantee right to livelihood.

In **Sant Ram, AIR 1960 SC 932** a case which arose before Maneka Gandhi, the Supreme Court ruled that the right to livelihood would not fall within the expression "life" in Article 21. The Court said curtly:

** "The argument that the word "life" in Article 21 of the Constitution includes "livelihood" has only to be rejected. The question of livelihood has not in terms been dealt with by Article 21."*

Olga Tellis v. Bombay Municipal Corporation, AIR 1986 SC 180 is case was brought by pavement dwellers to resist eviction of their habitat by the Bombay Municipal Corporation, that the right to

livelihood is born out of the right to life, as no person can live without the means of living, that is, the means of livelihood. The Court has observed in this connection:

"...the question which we have to consider is whether the right to life includes the right to livelihood. We see only one answer to that question, namely, that it does. The sweep of the right to life conferred by Article 21 is wide and far-reaching. It does not mean, merely that life cannot be extinguished or taken away as, for example, by the imposition and execution of the death sentence, except according to procedure established by law. That is but one aspect of the right to life an equally important facet of that right is the right to livelihood because, no person can live without the means of living, that is, the means of livelihood."

If the right to livelihood is not treated as a part and parcel of the constitutional right to life, the easiest way of depriving a person of his right to life would be to deprive him of his means of livelihood to the point of abrogation.

Personal Liberty

In India the concept of 'liberty' has received a far more expansive interpretation. The Supreme Court of India has rejected the view that liberty denotes merely freedom from bodily restraint; and has held that it encompasses those rights and privileges that have long been recognized as being essential to the orderly pursuit of happiness by free men. The meaning of the term 'personal liberty' was considered by the Supreme Court in the Kharak Singh's case, which arose out of the challenge to Constitutional validity of the U. P. Police Regulations that provided for surveillance by way of domiciliary visits and secret picketing. Oddly enough both the majority and minority on the bench relied on the meaning given to the term "personal liberty" by an American judgment (per Field, J.,) in *Munn v Illinois*, which held the term 'life' meant something more than mere animal existence. The prohibition against its deprivation extended to all those limits and faculties by which the life was enjoyed. This provision equally prohibited the mutilation of the body or the amputation of an arm or leg or the putting of an eye or the destruction of any other organ of the body through which the soul communicated with the outer world. The majority held that the U. P. Police Regulations authorizing domiciliary visits [at night by police officers as a form of surveillance, constituted a deprivation of liberty and thus] unconstitutional. The Court observed that the right to personal liberty in the Indian Constitution is the right of an individual to be free from restrictions or encroachments on his person, whether they are directly imposed or indirectly brought about by calculated measures.

The Supreme Court has held that even lawful imprisonment does not spell farewell to all fundamental rights. A prisoner retains all the rights enjoyed by a free citizen except only those 'necessarily' lost as an incident of imprisonment

CONCLUSION

Deprivation of livelihood would not only denude the life of its effective content and meaningfulness but it would make life impossible to live. And yet such deprivation of life would not be in accordance with the procedure established by law, if the right to livelihood is not regarded as a part of the right to life.

Right to work has not yet been recognised as a Fundamental Right. In **Secretary, State of Karnataka v. Umadevi (3)**, AIR 2006 SC 1806 the argument of infringement on an expansive interpretation of Article 21 i.e., the right of employment was not accepted by the Supreme Court and the reason for that was amongst others, that the employees accepted the employment on their own violation and with eyes open as to the nature their employment. The Court also rejected the argument that the right to life under Article 21 would include the right of employment at the present point of time.

Q. What is 'preventive detention'? Elucidate the Constitutional provisions dealing with Preventive Detention.

Article 22 of the Constitution provides preventive detention laws. The object of preventive detention is to prevent a person from committing a crime and not to punish him as is done under punitive detention.

Preventive Detention

Preventive detention has not been unknown in other democratic countries like England and Canada but their recourse has been had to it only in war time. In **A.K. Gopalan v. State of Madras**, AIR 1950 S.C. 27, the Supreme Court had expressed the view that a detent could not claim the freedom guaranteed by Article 19(1)(d) if it was infringed by his detention.

But this view of the court changed in **R.C. Cooper v. Union of India**, AIR 1970 S.C. 564, and in Maneka Gandhi's case. The court expressed the view in these cases that a law relating to preventive detention must satisfy not only the requirements of Article 22 but also the requirements of Article 21 of the Constitution.

The legislative capacity of Parliament or the State legislatures to enact a law of preventive detention is however, limited to clauses 4 to 7 of Article 22 which lay down a few safeguards for a person subjected to such detention. The scheme of these clauses is to classify preventive detention in three categories, viz.:

(a) A preventive detention **up to two months**, provision for which may be made either by Parliament or a State legislature, in such a case, no reference may be made to an Advisory Board;

However, Constitution (44th Amendment Act, 1978) has substituted a new clause for clause (4) which now reduces the maximum period for which a person may be detained without obtaining the opinion of Advisory Board from 3 months to 2 months. The detention of a person for a longer period than 2 months can only be made after obtaining the opinion of the Advisory Board.

(b) Preventive detention for over three months subject to safeguard of an Advisory Board consisting of persons qualified to act as High Court judges. No person can remain in preventive detention for more than 3 months unless the Board holds that in its opinion, there are sufficient causes for detention.

The Supreme Court has held In **Puranlal Lakhan Lai v. Union of India, AIR 1958 S.C. 163**, that the Advisory Board's function is not to determine the period of detention but only to determine whether the detention by itself is justified.

(c) Preventive detention for over three months without the safeguard of an Advisory Board. Such detention is possible if Parliament prescribes by law the circumstances under which, and the class or classes of cases in which a person may be detained for over three months without reference to Advisory Board.

Parliament may also prescribe the maximum period for which a person can be detained in cases (b) and (c). This provision, it has been held is merely permissive and does not oblige Parliament to prescribe any maximum period. Further, Parliament may by law prescribe the procedure to be followed by an Advisory Board in an inquiry under Clause (4).

The following safeguards have been provided to a detenu:

(1) Grounds of detention must be communicated

Article 22(5) gives the right to the detenu to be communicated the grounds of detention as soon as possible, the detaining authority making the order of detention must as soon as possible communicate to the person detained the grounds of his arrest and to give the detenu the earliest opportunity of making representation against the order of the detention. The clause (5) of Article 22 imposes an obligation on the detaining authority to furnish to the detenu the grounds for detention, "as soon as possible". The grounds of detention must be clear and easily understandable by the detenu.

In **Ram Bahadur v. State of Bihar, AIR 1975 S.C. 245**, It has been held that where the order of detention is founded on distinct and separate grounds, if any of the grounds is vague or irrelevant, the entire order must fail.

(2) Right of representation

Article 22 imposes an obligation upon the Government to afford the detenu the opportunity to make representation under clause (5) of Article 22. It makes no distinction between order of detention for only two months and less and for those for a longer duration.

The obligation applies to both kinds of orders. It is clear from clauses (4) and (5) of Article 22 that there is dual obligation on the appropriate Government and dual right in favor of detenu, namely, (1) to have his representation irrespective of the length of detention considered by the appropriate Government,

and (ii) to have once again in the light of the circumstances of the case considered by Board before it gives its opinion.

If in the light of the representation, the Board finds that there is no sufficient cause for detention, the Government has to revoke the order of detention and set at liberty the detenu.

(3) Advisory Board

Article 22 provides that the detenu under the preventive detention law shall have the right to have his representation against his detention reviewed by an Advisory Board. If the Advisory Board reports that the detention is not justified, the detenu must be released forthwith. If the Advisory Board reports that the detention is justified, the government may fix the period for detention.

The Advisory Board must conclude its proceedings expeditiously and must express its opinion within the time prescribed by law. Failure to do that makes detention invalid. Along with its opinion, the Board must forward the entire record to the Government who is supposed to take a decision on the perusal of the entire record.

The Constitution (44th Amendment Act, 1978) has amended Article 22 and reduced the maximum period for which a person may be detained without obtaining the opinion of the Advisory Board **from 3 months to 2 months.**

It has also changed the constitution of the Board which shall now consist of a Chairman and two other members. The Chairman must be a sitting judge of the appropriate High Court and other members shall be either a sitting or retired judge of a High Court.

The detenu has no right of legal assistance in the proceedings before the Advisory Board. But if the Government is given a facility, it should equally be provided to the detenu.

The discretion of the Board to permit or not to permit must be exercised in conformity with Articles 14 and 21 of the Constitution. It has been held in **Nand Lal vs. State of Punjab, AIR 1921 S.C. 2041**, that this discretion cannot be exercised in an arbitrary manner.

The Constitution (44th Amendment Act, 1978) now provides that Article 21 will not be suspended during emergency and hence detention can be challenged in a court of law.

*** Q. Discuss the nature of “Right against Exploitation” under Articles 23 and 24 of the Constitution of India.**

Traffic in human beings means to deal in men and women like goods, such as to sell or let or otherwise dispose of them. It would include traffic in women and children for immoral or other purposes. The suppression of Immoral Traffic in Women and Girls Act, 1956 is a law made by the parliament under

Article 35 of the constitution for the purpose of punishing acts which result in traffic in human beings. Slavery is not expressly mentioned but there is no doubt that expression "traffic in human beings" would cover it.

Under the existing law whoever imports, exports, removes, buys, sells or disposes of any person as a slave or accepts, receives or detains against his will any person as a slave shall be punished with imprisonment. Bonded labour has also been made illegal by law. Other form of forced labour- interpretation:- According to **Art. 23 (1)**, traffic in human beings, begar, and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law. The Calcutta High Court in **Dulal Samanta vs The District Magistrate, Howrah, AIR 1958 Cal 365**, interpreting the expression „other similar forms of forced labour“ as appearing in Art. 23(1) held that the expression is to be interpreted *ejusdem generis* and it has to be something in the nature of either traffic in human beings or begar, conscription for police service or military service cannot come under either of them. Article 23(1) does not prohibit compulsory service for public purposes and in imposition of such services the state shall not make any discrimination on the ground of religion, race, caste or any of them. However, the discrimination on the ground of sex is not forbidden by art. 23(2) and the state may exempt women from compulsory service.

Meaning and Concept:

Begar: The term begar is of Indian origin. It means involuntary work without payment. Begar constitutes of 2 elements- (a) It is to compel a person to work against his will, and (b) he is not paid any remuneration for that work. Begar thus means "labour or service exacted by Government or a person in power without giving remuneration for it." The practice was widely prevalent in the erstwhile princely States in India before the advent of the Constitution. It was a great evil and has therefore been abolished through Article 23(1). In **Kahason Thangkhul v. Simirei Shailei, AIR 1961 Manipur**, a custom though immemorial according to which the Headman of the village, for being the headman and the first settlement in the village, was entitled to one day's free labour of one person from each household every month, was struck down as amounting to begar, prohibited by Article 23(1). In **Chandra v. State of Rajasthan, AIR 1959 Cal 496** the Sarpanch of the village ordered every household to send one man, along with a spade and an iron pan, to render free service for the embankment of the village tank. The Rajasthan High Court held the order of the Sarpanch clearly against Article 23(1) which forbade begar. In **Dubar Goala v. Union Of India, AIR 1952 Cal 496**, the petitioners, who were licensed porters at Howrah Railway station, voluntarily entered into an agreement to do two hours extra work for the Railway administration for which they were to be paid some remuneration. The Calcutta High Court held the agreement not violated of Article 23(1).

A law punishing a person for refusing to render personal services solely on the ground of caste or class is not hit by Article 23(1).

(2) Traffic in human beings: The expression „traffic in human beings“ commonly known as slavery, implies the buying and selling of human beings as if they are chattels, and such a practice is

constitutionally abolished Traffic in women for immoral purposes is also covered by this expression **(3) Forced Labour**: The words „other similar forms of forced labour“ in Article 23(1) are to be interpreted ejusdem generis. The kind of „Forced Labour“ contemplated by the Article has to be something in the nature of either traffic in human beings or begar. The prohibition against forced labour is made subject to one exception. Under Article 23(2) the State can impose compulsory service for public purposes. **Similar forms of Forced Labour** Every other similar form of forced labour is prohibited by Article 23(1) Bonded Labour is an instance of forced labour. The State is to warrant necessary compliance from the private individuals and to ensure that Fundamental Rights are not violated and strictly observed by the private individuals when the persons complain of such violation belongs to the weaker section of humanity and are unable to wage a legal battle against a strong and powerful opponent who is exploiting him. In **Peoples Union for Democratic Rights v Union of India, AIR 1982 SC 1473**, the Supreme Court held that Article 23(1) would strike at forced labour in whatever form it might manifest itself. It thus prohibited not only begar but also prohibited compelling all unwilling labour, whether paid or not. Any amount of remuneration paid to a person will be immaterial if labour is forced upon him.

In **Bandhua Mukti Morcha v. Union of India, AIR 1998 SC 3164**, the Supreme Court observed that the failure of the State to identify the bonded labourers, to release them from their bondage and to rehabilitate them as envisaged by the Bonded Labour System (Abolition) Act, 1976, violated Articles 21 and 23. The Court held that „bonded labour“ a crude form of forced labour was prohibited by Article 23. In **Neeraja Choudhary v. State of M.P, AIR 1984 SC 1099**, the Supreme Court directed the State to identify and rehabilitate the bonded labourers as the court apprehended that if they are not rehabilitated then they would soon relapse into the state of bondage. The imposition of forced labour on a prisoner will get protection from the ban under Article 23 of the Constitution, only if it can be justified as a necessity to achieve some public purpose. It is said that hard labour imposed on proved offenders would have a deterrent effect against others from committing crimes and thus, the society would, to that extent, be protected from perpetration of criminal offence by others.

d. Object and scope Article 23 of the Constitution prohibits forced labour and mandates that any contravention of such prohibition shall be an offence punishable in accordance with law⁴. While ban against traffic in human beings is absolute, the prohibition against forced labour is made subject to one objection i.e. the State is permitted to impose compulsory service if such service is necessary for public purpose. During the making of the Constitution some exception was thought of in the original draft and after a full debate the Constituent Assembly headed by Dr.B.R. Ambedkar adopted sub clause (2) regarding „pubic purposes“.

2. *Compulsory Service for Public Purposes [Article 23(2)] Clause (2) of Article 23, an exception to clause (1), enables the State to impose compulsory service for public purpose. However, while imposing such compulsory service, the State is prohibited from making any discrimination on the ground only of religion, race, caste, class or any of them. The expression „public purpose“ includes any object or aim in which the general interest of the community as opposed to the particular interest of individuals is directly and essentially concerned. It would include the social or economic objectives enshrined in part

IV of the Constitution relating to Directive Principles of State Policy. In **Devendra Nath Gupta v. State of M.P. AIR 1983 MP 172**, the Madhya Pradesh High Court held that the service required to be rendered by the teachers towards educational survey, family planning, preparation of voters' list, general elections, etc. were for „public purpose“ and therefore even if no compensation was paid, that did not contravene Article 23. In **State of H.P. v. Jarawar, AIR 1955 HP 18**, it was held that conscription for the defence of the country or for the social services, are held in the nature of compulsory service, which can be imposed by the State, for public purposes, under clause (2) of Article 23. The state is obligated to pay for the compulsory services imposed. It was said in justification of this provision in the Constituent Assembly that whenever compulsory services is needed, it shall be demanded from all and if the State demands service from all and does not pay anyone, then the State is not committing any great inequity. When a convict is sentenced to rigorous imprisonment and forced to work in execution of his sentence, the forced labour extracted from the prisoners should be suitably compensated by amount of reasonable wages for the work taken by them.

It was held in **Prison Reforms Case** that the prisoners are entitled to the payment of reasonable wages for the amount of labour extracted from them while serving the sentence in the prison. The right not to be exploited in contravention of Article 23 is a right guaranteed to a citizen and there is no reason why a prisoner should lose his right to receive wages for his labour extracted from him by the State. Reformation and rehabilitation of prisoners are of great public purpose and the reformatory approach is now very much intertwined with rehabilitative aspect to a convicted prisoner. The court in **Gurudev Singh v. State of H.P, AIR 1991 HP 76**, disapproved the argument advanced that giving of better facilities and payment of wages to them would mean creating an expression that committing of crime and going to the prison is a better mode of living and earning wages. **Forced labour – prohibited in private contract-** In **Asiad Workers Case, 1982 Indlaw SC 88** the Supreme Court gave liberal interpretation to the expression forced labour and held that when wages less than the minimum wages are paid to the labour engaged by the private contractor it would be regarded as forced labour. The court reasoned that even if a person has contracted with another person to perform service, and there is consideration, for such service, he cannot be forced, by the compulsion of law or otherwise, to continue to perform such service, as that would be a forced labour. The Calcutta High Court in **Dulai Shamanta v. District Magistrate, Howrah, AIR 1958 Cal 365**, held that the state is not prevented from imposing compulsory service for public purpose such as conscription for police or military services as this service is neither begar nor trafficking human beings and not hit by Article 23 of the constitution. Similarly, in **Durbar Goala v. Union of India, AIR 1983 Ker 261**, it was held that if a person voluntarily agrees to do a work or to do additional work for remuneration of a certain benefits for return there is no forced labour or begar.

In **Raj Bahadur Case, AIR 1953 Cal 496** it was held that Article 23 specifically prohibits traffic in human beings or women for immoral purpose. **3. Employment of Children [Article 24]** Article 24 provides : “No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment”. This provision read with the Directive Principles of State Policy

contained in Articles 39(e) and 39(f), provides for the protection of the health and strength of children below the age of fourteen years. The Supreme Court in *Peoples Union for Democratic Rights v. Union of India* (AIR 1982 SC 1473), held that building construction work was such hazardous employment where children below the age of fourteen years should not be employed, and the prohibition contained in Article 24 could be plainly and indubitably enforced against everyone, whether State or private individual. India is a federal form of government, and child labour is a matter on which both the central government and state governments can legislate. The major national legislative developments include the following: The Factories Act of 1948: The Act prohibits the employment of children below the age of 14 years in any factory. The law also placed rules on who, when and how long can pre-adults aged 15–18 years be employed in any factory. The Mines Act of 1952: The Act prohibits the employment of children below 18 years of age in a mine. The Child Labour (Prohibition and Regulation) Act of 1986: The Act prohibits the employment of children below the age of 14 years in hazardous occupations identified in a list by the law. The list was expanded in 2006, and again in 2008. The Juvenile Justice (Care and Protection) of Children Act of 2000: This law made it a crime, punishable with a prison term, for anyone to procure or employ a child in any hazardous employment or in bondage.

The Right of Children to Free and Compulsory Education Act of 2009: The law mandates free and compulsory education to all children aged 6 to 14 years. This legislation also mandated that 25 percent of seats in every private school must be allocated for children from disadvantaged groups and physically challenged children.

CONCLUSION Most of the Fundamental Rights operate as limitations on the power of the State and impose negative obligations on the State not to encroach on individual liberty and the rights are only enforceable against the State. But there are certain Fundamental Rights which are enforceable against the whole world egs. Articles 17, 23 and 24. Article 23 is not limited in its application against the State but strikes as such practices wherever they are found and thus, the sweep of Article 23 is wide and unlimited. Although Articles 23 and 24 lay down definite provisions against trafficking and child labour, the weaker sections of the society are still faced by such grave problems. Punishable by law, these acts are now legitimately bound by legal actions of the Parliament in the form of Bonded Labour Abolition Act of 1976 and the Child Labour Act of 1986, along with the ground rules and provisions stated in the Right against Exploitation act. Awareness must be spread that child labour is not acceptable and this awareness shouldn't be restricted to just advertisements in newspapers. It should spread to villages. Women's groups should be formed to take care of underprivileged women and girls. I think, we, the youth, can bring about a major change if we choose to. Only then can India become a nation where all its citizens live a life of equality, without fear of exploitation. In my opinion, the principle of equality before law, equal protection of laws, and any other fundamental right for that matter, would have no meaning if one's life is under subjugation, and at the mercy of another man. Even though this fundamental right does assure citizens protection of the government, India still has a long way to go on the path of achieving zero exploitation.

Q. Discuss with case laws the nature and scope of the “Right to Religion” under Article 25 to Article 28 of the Constitution of India. Can a institution be established in India for religious purpose? Discuss the rights of religious minorities.

The Constitution uses but does not define the expressions 'religion' and 'religious denomination' and therefore the courts have found it necessary to explain the meaning and connotation of these words. The Supreme Court has observed that: In the background of the provisions of the Constitution and the light shed by judicial precedent we may say that religion is a matter of faith. It is a matter of belief and doctrine. It concerns the conscience, i.e., the spirit of man. It must be capable of expression in word and deed, such as worship or ritual - **SP Mittal v Union of India AIR 1983 SC 1.**

Right to Religious Freedom

Individual's Rights

Religious freedom as an individual's right is guaranteed by the Constitution to 'all persons' within the following parameters:

1. All persons are equally entitled to freedom of conscience and the right freely to profess, practice and propagate religion - **Article 25(1).**
2. There shall be freedom as to payment of taxes for promotion of any particular religion by virtue of which no person shall be compelled to pay any taxes the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religious denomination - **Article 27.**
3. No religious instruction is to be provided in the schools wholly maintained by State funding; and those attending any State recognized or State-aided school cannot be required to take part in any religious instruction or services without their (or if they are minor their guardian's) consent - **Article 28.**

Group Rights

Freedom of religion is guaranteed by the Constitution of India as a group right in the following ways:

1. Every religious denomination or any section thereof has the right to manage its religious affairs; establish and maintain institutions for religious and charitable purposes; and own, acquire and administer properties of all kinds - **Article 26.**
2. Any section of the citizens having a distinct language, script or culture of its own shall have the right to conserve the same - **Article 29.**
3. Religious and linguistic minorities are free to establish and administer educational institutions of their choice, which shall not be discriminated against by the State in the matter of giving aid or compensation in the event of acquisition - **Article 30.**

Interpreting the constitutional provisions relating to freedom of religion the Supreme Court has observed: The right to religion guaranteed under Articles 25 & 26 is not an absolute or unfettered right; they are subject to reform on social welfare by appropriate legislation by the state. The Court therefore while interpreting Article 25 and 26 strikes a careful balance between matters which are essential and integral part and those which are not and the need for the State to regulate or control in the interests of the community — **AS Narayana Deeshitalyu v State of Andhrn Pradesh (1996) 9 SCC 548.**

Restriction: The right to religion guaranteed under Article 25 or 26 is not an absolute or unfettered right; they are subject to reform on social welfare by appropriate legislation by the State. The Court therefore while interpreting Article. There have been numerous other rulings explaining the scope and connotation of the religious liberty provisions in the Constitution. Given below is a summary of the major rulings:

a. Articles 25-30 embody the principles of religious tolerance that has been the characteristic feature of Indian civilization from the start of history. They serve to emphasize the secular nature of Indian democracy which the founding fathers considered should be the very basis of the Constitution - **Sardar Suedna Taiiir Saifiiddin v State of Bombay AIR 1962, SC 853.**

b. Freedom of conscience connotes a person's right to entertain beliefs and doctrines concerning matters which are regarded by him to be conducive to his spiritual well being - **Ratilal Panachand Gandhi v State of Bombay AIR 1954 SC, 388.**

c. To profess a religion means the right to declare freely and openly one's faith - **Punjab Rao v DP Meshram AIR 1965 SC 1179.**

d. Religious practices or performances of acts in pursuance of religious beliefs are as much a part of religion as faith or belief in particular doctrines - **Ratilal Panachand Gandhi v State of Bombay AIR 1954 SC 388.**

e. What constitutes an integral or essential part of a religion or religious practice is to be decided by the courts with reference to the doctrine of a particular religion and includes practices regarded by the community as parts of its religion - **Seshammal v State of Tamil Nadu AIR 1972 SC 1586.**

f. The right to profess, practise and propagate religion does not extend to the right of worship at any or every place of worship so that any hindrance to worship at a particular place per se will infringe religious freedom - **Ismail Paruqi v Union of India (1994) 6 SCC 360.**

g. Under Article 25 to 'propagate' religion means 'to propagate or disseminate his ideas for the edification of others' and for the purpose of this right it is immaterial 'whether propagation takes place in a church or monastery or in a temple or parlour meeting' - **Commissioner, Hindu Religious Endowments, Madras v Lakshmindra Thirtha Swamiar of Sri Shirur Mutt, AIR 1954 SC 282.**

h. To claim to be a religious denomination a group has to satisfy three conditions: common faith, common organization and designation by a distinctive name - **SK Mittal v Union of India AIR 1983 SC 1**.

i. The expression 'matters of religion' in Article 26 extends to acts done in pursuance of religion and covers rituals, observances, ceremonies and modes of worship - **Jagannath Ramanuj Das v State of Orissa AIR 1954 SC 400; Dargah Committee v Husain AH AIR 1961 SC 1402**.

j. A religious denomination has the right to lay down the rites and ceremonies to be performed by its members - **Ramanuj v Tamil Nadu State AIR 1972 SC 1586**.

k. A 'common burden' (e.g., land revenue) which is imposed on all does not violate the right of a religious denomination - **Govt. of Tamil Nadu v Ahobila AIR 1987 SC 245**.

l. Property of a religious denomination violating the agrarian reform and land ceiling laws can be lawfully acquired by the State - **Narendra v State of Gujarat AIR 1974 SC 2098**.

m. A law which takes away the right of administration from a denomination and vests it in a secular body would infringe upon the Constitution - **Ratilal Panachand Gandhi v State of Bombay AIR 1954 SC 388**.

n. Since the State is secular and freedom of religion is guaranteed both to individuals and groups, it is against the constitutional policy to pay out of public funds any money for the promotion or maintenance of a particular religion - **Commissioner, Hindu Religious Endowments v LT Swamiar AIR 1954 SC 282**.

Educational Rights of Minorities

The educational rights of minorities under Article 30 of the Constitution have from the earliest period of the post-Constitution era been the subject of a large number of judicial decisions of all kinds and implications. In a 1958 case the Supreme Court had assertively said that: Our Constitution has guaranteed certain cherished rights of minorities concerning their language, culture and religion. So long as the Constitution stands as in is and is not altered, it is, we conceive, the duty of this court to uphold the fundamental rights and thereby honour our sacred obligation to the minority communities who are of our own....The right guaranteed under Article 30 (1) is a right that is absolute and any law or executive direction which infringes the substance of that right is void to the extent of infringement - **in re Kerala Education Bill AIR 1958 SC 956**.

In a later ruling of 1974 the courts observed: These provisions enshrined a befitting pledge to the minorities in the Constitution of the country whose greatest son had laid down his life for the protection of the minorities. As long as the Constitution stands as it is today, no tampering with those rights can be countenanced. Any attempt to do so would be not only an act of breach of faith; it would be constitutionally impermissible - **St Xavier's College v State of Gujarat AIR 1974 SC 1389**.

Some scholars have expressed an opinion that the scope of Article 30 of the Constitution is to be limited to the purposes mentioned in Article 29 and, therefore, minorities should be allowed to establish educational institutions of their choice only for the protection of their distinct languages, scripts and cultures. This opinion has never been accepted by the superior courts. In ***St Stephen's College v University of Delhi* (1992) 1 SCC 558** the

Supreme Court decided that minority intake in minority institutions should in the interest of national integration be limited to 50%. There is no law or judicial decision to ensure a reasonable presence of children from the minority communities in the educational institutions established and run by the majority community (e.g., the chain of DAY, Sana tan Dharma and Hindu Colleges).

From 1997 onwards large Supreme Court Benches have looked into various aspects of the provision of Article 30, generally restricting its scope — ***TMA Pai foundation v State of Karnataka* (2002) 8 SCC 481; *Islamic Academy of Education v State of Karnataka* (2003) 6 SCC 697; *PA Inamdar v State of Maharashtra* AIR 2005 SC 3226.**

Q. What is meant by “constitutional remedies” ? What are the remedies available under the part III of the Constitution of India for the enforcement of the Rights conferred by the said part? Name 5 writs the Supreme Court can issue, in the interest of protection of Fundamental Rights and explain their meanings.

Article 32 which was referred to “as the very soul of the constitution” by Dr. Ambedkar, provides for constitutional remedies. Clause 2 of Article 32 provides that, “*The Supreme Court shall have the power to issue directions or order or writs including the writs in the nature of habeas corpus, mandamus, prohibition, Quo warrant and criterion, whichever may be appropriate for the enforcement of any of the rights conferred by*” fundamental rights. The citizens are given the right to move—the Supreme Court in case of transgression of fundamental rights. The Supreme Court thus is constituted into a protector and guarantor fundamental rights. The right to constitutional remedy is itself a fundamental right.

Besides the Supreme Court, the High Courts also have been given a role in the protection of fundamental rights. Under Art. 226 of the constitution, High Courts also can issue writs for the enforcement of fundamental rights.

But the jurisdictions of the Supreme Court and the High Courts in the matter of issue of writs are slightly different. The Supreme Court can issue writs only in case of infringement of a fundamental right in part III of the constitution. The High Courts on the other can issue writs against infringement of fundamental rights, as well as against contravention of ordinary law of redress grievances arising there from. Thus the area of High Courts, with respect to the power to issue writs is wider than that of the Supreme Court. However, competence of the High Courts to issue writs is limited within its territorial jurisdiction. The Supreme Court’s area of competence is co-terminus with the territory of India as a whole.

In case of transgression of fundamental rights the Supreme Court or the High Courts may issue five kinds of writs. These are writs of Habeas Corpus, Mandamus, Prohibition, Criterion, and Quo warranto.

Limitations

Like fundamental rights themselves, the right to constitutional remedies under Article 32 are not without limits. The constitution visualizes there situations when fundamental rights may be denied hut constitutional remedies will not be available i.e. Article 32 will not be applicable.

- Article 33 empower the Parliament to modify application of fundamental rights to armed forces and the Police to ensure proper discharge of their duties.
- **Secondly**, under Article 34, during the operation of Martial law in any area, the Parliament may indemnify any person in the service of the central or a state government for acts for the maintenance or restoration of law and order.
- **Thirdly**, during emergency proclaimed under Art 352 of the constitution, the fundamental rights guaranteed to the citizens, will remain suspended. Article 358 authorize the Parliament to restrict fundamental rights guaranteed by Art 19 during the pendency of an emergency under Article 352.

Article 359 empower the President to suspend the right to move the courts for the restoration of fundamental rights. In other words, Article 359 empowers the President to suspend Art 32 of the constitution. Such an order however is to be submitted to the Parliament, and the Parliament has the right to disapprove the Presidential order.

Provisions of Writ under Article 32

The Constitution of India provides various Fundamental rights to all its citizens. The provisions for proper enforcement of these Fundamental rights are also given in the Constitution. In simple terms, enforcement of the Fundamental rights is safeguarded with the help of 5 prerogative Writs. Writs are nothing but written orders of the court ordering a party to whom it is addressed to perform or cease from performing a specified act. So Article 32 empowers the Supreme Court while Article 226 empowers the High Courts to issue writs against any authority of the State in order to enforce the Fundamental rights.

The “State” is defined under Article 12 of the Constitution and includes the Government and the Parliament of India, Government and the Legislatures of the States and all other authorities within the Indian Territory or under the control of Government of India. “Other authorities” is an expression that includes business organizations and citizens.

Let us now understand the five types of Writs:

1. Writ of Habeas Corpus: One of the valuable writs for personal liberty is “Habeas Corpus” which means “You may have the body”. If any person is detained in prison or a private custody without legal

justification; this writ is issued to the authority confining such person, to produce him/her before the Court. The Court intervenes here and asks the authority to provide the reasons for such detention and if there is no justification, the person detained is set free. The applicant for this writ can either be the person in detention or any person acting on his/her behalf to protect his/her liberty. This writ provides for immediate relief in case of unlawful detention.

For instance : the first Habeas Corpus case in India was filed in Kerala where P. Rajan, a college student was arrested by the Kerala police and he died in custody unable to bear the torture. His father Mr T.V. Eachara Warriar filed a Habeas Corpus writ and it was proved that Rajan died in police custody.

2. Writ of Certiorari: The meaning of Certiorari is to be certified. This writ is issued when any lower court or a tribunal exercises a wrongful jurisdiction and decides the case. The party affected can move this writ to higher courts like the High Court or the Supreme Court. Writ of Certiorari can be issued to the quasi judicial or subordinate courts when they act:

- In excess or without any jurisdiction
- In contravention to the principles of Natural justice
- In violation of the prescribed procedure as established by law
- Resulting in an error of judgment apparent on the face of it.

The writ of Prohibition and Writ of Certiorari are similar except for the time of their issuance. The former is issued before the passing of the order by the lower court while the latter is issued after passing of the order.

3. Writ of Mandamus: The term “Mandamus” in Latin means “ We command”. This writ is issued to a public official who refrains from performing his public duties which he is obliged to do. This writ can also be issued to any public authority (including the government, corporation and Court) commits an act which is detrimental to the welfare of the general public. This writ however cannot be issued against the President and the Governor.

4. Writ of Quo-Warranto: “By what warrants?” is the literal meaning of the term Quo-Warranto. The issuance of this writ takes place to restrain a person from acting in public office to which he is not entitled. In simple words , if a person occupies a public office without being qualified for the office, then this writ is issued to restrain the concerned authority from discharging his duties. The High Court of that particular state has the authority to issue this writ and direct the person to vacate the office in question. The writ of Quo-Warranto is issued in 3 instances when

- * The office in question is a public office and is substantive in nature.
- The State or the Constitution has created the office
- The public servant (respondent) should have asserted a claim on the office.

5. Writ of Prohibition: Writ of Prohibition is issued to a subordinate to cease doing something which it is not supposed to do as per law. Normally, this writ is issued by the superior courts to the lower courts

when the lower court tries to exceed the limit of jurisdiction vested in it. Likewise, if the court acts in absence of jurisdiction, this writ can be issued. Once this writ is issued the lower court is under an obligation to stop its proceedings. One cannot issue this writ against a public official who does not have judicial or quasi-judicial powers. This writ is issued before the lower court passes an order.

The citizens are entitled to appropriate relief under the provisions of Article 32 of the Constitution, **provided it is shown to the satisfaction of the Court that the Fundamental Right of the petitioner had been violated.** (Vide *Daryao & Ors. Vs. State of U.P. & Ors.* AIR 1961 SC 1457). This **Court has a constitutional duty to protect the Fundamental Rights of Indian citizens.** (Vide *M.C. Mehta Vs. Union of India* AIR 2006 SC 1325).

More so, a writ lies only against a person if it is a statutory body or performs a public function or discharges a public or a statutory duty, or a "State" within the meaning of Article 12 of the Constitution. (Vide *Anandi Mukta Sadguru Trust Vs. V.R. Rudani* AIR 1989 SC 1607).

Q. Discuss the nature and scope of Public Interest Litigation with reference to relevant Judicial decisions in India. Justify 'Public Interest Litigation' as saviour for poor weaker section of the society.

In Indian law, **public interest litigation** means litigation for the protection of the public interest. It is litigation introduced in a court of law, not by the aggrieved party but by the court itself or by any other private party. It is not necessary, for the exercise of the court's jurisdiction, that the person who is the victim of the violation of his or her right should personally approach the court. Public interest litigation is the power given to the public by courts through judicial activism. However, the person filing the petition must prove to the satisfaction of the court that the petition is being filed for a public interest and not just as a frivolous litigation by a busy body.

Such cases may occur when the victim does not have the necessary resources to commence litigation or his freedom to move court has been suppressed or encroached upon. The court can itself take cognizance of the matter and proceed suo motu or cases can commence on the petition of any public-spirited individual.

Origin & Development: The seeds of the concept of public interest litigation were initially sown in India by *Krishna Iyer J.*, in 1976 in **Mumbai Kamagar Sabha vs. Abdul Thai** (AIR 1976 SC 1455; 1976 (3) SCC 832) and was initiated in **Akhil Bharatiya Soshit Karamchari Sangh (Railway) Vs. Union Of India And Ors.** 1981 AIR SC 298, wherein an unregistered association of workers was permitted to institute a writ petition under Art.32 of the Constitution for the redressal of common grievances. Krishna Iyer J., enunciated the reasons for liberalization of the rule of Locus Standi in **Fertilizer Corporation Kamgar vs. Union of India** (AIR 1981 SC 149; 1981 (2) SCR 52) and the ideal of 'Public Interest Litigation' was blossomed in **S.F. Gupta and others vs. Union of India**, (AIR 1982 SC 149).

Public Interest Litigation and Judicial Activism: Public interest litigation or social interest litigation today has great significance and drew the attention of all concerned. The traditional rule of "Locus Standi" that

a person, whose right is infringed alone can file a petition, has been considerably relaxed by the Supreme Court in its recent decisions. Now, the court permits public interest litigation at the instance of public spirited citizens for the enforcement of constitutional or legal rights. Now, any public spirited citizen can move/approach the court for the public cause (in the interests of the public or public welfare) by filing a petition:

1. in Supreme Court under Art.32 of the Constitution;
2. in High Court under Art.226 of the Constitution; and
3. in the Court of Magistrate under Sec.133, Cr. P.C.

Justice Krishna layer fertilizer Corporation Kamgar Union vs. Union of India, (1981) enumerated the following reasons for liberalization of the rule of Locus Standi:-

1. Exercise of State power to eradicate corruption may result in unrelated interference with individuals' rights.
2. Social justice wants liberal judicial review administrative action.
3. Restrictive rules of standing are antithesis to a healthy system of administrative action.
4. "Activism is essential for participative public justice".

Therefore, a public minded citizen must be given an opportunity to move the court in the interests of the public.

In order to ensure that FRs did not remain empty declarations, the founding fathers made various provisions in the Constitution to establish an independent judiciary. Provisions related to FRs, DP and independent judiciary together provided a firm constitutional foundation to the evolution of PIL in India. The founding fathers envisaged "the judiciary as a bastion of rights and justice". An independent judiciary armed with the power of judicial review was the constitutional device chosen to achieve this objective. The power to enforce the FRs was conferred on both the Supreme Court and the High Courts—the courts that have entertained all the PIL cases.

Merits:

1. In Public Interest Litigation (PIL) vigilant citizens of the country can find an inexpensive legal remedy because there is only a nominal fixed court fee involved in this.
2. Further, through the so-called PIL, the litigants can focus attention on and achieve results pertaining to larger public issues, especially in the fields of human rights, consumer welfare and environment.

Demerits:

1. The genuine causes and cases of public interest have in fact receded to the background and irresponsible PIL activists all over the country have started to play a major but not a constructive role in the arena of litigation. Of late, many of the PIL activists in the country have found the PIL as a handy tool of harassment since frivolous cases could be filed without investment of heavy court fees as required in private civil litigation and deals could then be negotiated with the victims of stay orders obtained in the so-called PILs.

2. The framers of Indian constitution did not incorporate a strict doctrine of separation of powers but envisaged a system of checks and balances. Policy making and implementation of policy are conventionally regarded as the exclusive domain of the executive and the legislature. **Vishaka v State of Rajasthan** which was a PIL concerning sexual harassment of women at work place. The court declared that till the legislature enacted a law consistent with the convention on the Elimination of All Forms of Discrimination Against Women which India was a signatory, the guidelines set out by the court would be enforceable.

3. The flexibility of procedure that is a character of PIL has given rise to another set of problems. It gives an opportunity to opposite parties to ascertain the precise allegation and respond specific issues.

4. The credibility of PIL process is now adversely affected by the criticism that the judiciary is overstepping the boundaries of its jurisdiction and that it is unable to supervise the effective implementation of its orders. It has also been increasingly felt that PIL is being misused by the people agitating for private grievance in the grab of public interest and seeking publicity rather than espousing public cause.

STEPS NECESSARY: With the view to regulate the abuse of PIL the apex court itself has framed certain guidelines (to govern the management and disposal of PILs.) The court must be careful to see that the petitioner who approaches it is acting bona fide and not for personal gain, private profit or political or other oblique considerations. The court should not allow its process to be abused by politicians and others to delay legitimate administrative action or to gain political objectives. There may be cases where the PIL may affect the right of persons not before the court, and therefore in shaping the relief the court must invariably take into account its impact on those interests and the court must exercise greatest caution and adopt procedure ensuring sufficient notice to all interests likely to be affected.

At present, the court can treat a letter as a writ petition and take action upon it. But, it is not every letter which may be treated as a writ petition by the court. The court would be justified in treating the letter as a writ petition only in the following cases-

- (i) It is only where the letter is addressed by an aggrieved person or
- (ii) a public spirited individual or

(iii) a social action group for enforcement of the constitutional or the legal rights of a person in custody or of a class or group of persons who by reason of poverty, disability or socially or economically disadvantaged position find it difficult to approach the court for redress.

Even though it is very much essential to curb the misuse and abuse of PIL, any move by the government to regulate the PIL results in widespread protests from those who are not aware of its abuse and equate any form of regulation with erosion of their fundamental rights. Under these circumstances the Supreme Court Of India is required to step in by incorporating safe guards provided by the civil procedure code in matters of stay orders /injunctions in the arena of PIL.

Conclusion: Public Interest Litigants, all over the country, have not taken very kindly to such court decisions. They do fear that this will sound the death-knell of the people friendly concept of PIL. However, bona fide litigants of India have nothing to fear. Only those PIL activists who prefer to file frivolous complaints will have to pay compensation to then opposite parties. It is actually a welcome move because no one in the country can deny that even PIL activists should be responsible and accountable. In any way, PIL now does require a complete rethink and restructuring. Anyway, overuse and abuse of PIL can only make it stale and ineffective. Since it is an extraordinary remedy available at a cheaper cost to all citizens of the country, it ought not to be used by all litigants as a substitute for ordinary ones or as a means to file frivolous complaints.

Q. Discuss the nature, utility and significance of the 'Directive Principles of State policy'. How does it differ from 'Fundamental Rights'? Discuss the relationship between the Fundamental Rights and the Directive Principles of State Policy highlighting the decisions of The Supreme Court in this regard.

Part IV, Articles 36-51 of the Indian constitution constitutes the Directive Principles of State Policy which contain the broad directives or guidelines to be followed by the State while establishing policies and laws. The legislative and executive powers of the state are to be exercised under the purview of the Directive Principles of the Indian Constitution.

The Indian Constitution was written immediately after India obtained freedom, and the contributors to the Constitution were well aware of the ruined state of the Indian economy as well as the fragile state of the nation's unity. Thus they created a set of guidelines under the heading Directive Principles for an inclusive development of the society.

Inspired by the Constitution of Ireland, the Directive Principles contain the very basic philosophy of the Constitution of India, and that is the overall development of the nation through guidelines related to social justice, economic welfare, foreign policy, and legal and administrative matters. The Directive Principles are codified versions of democratic socialist order as conceived by Nehru with an admixture of Gandhian thought.

However, the Directive Principles cannot be enforced in a court of law and the State cannot be sued for non-compliance of the same. This indeed makes the Directive Principles a very interesting and enchanting part of the Constitution because while it does stand for the ideals of the nation, these ideals have not been made mandatory.

Categories

The Directive Principles are divided into the following three categories:

- **Socialistic Directives:** This part contains the directives for securing the welfare of the people of India, equal distribution of the material resources of the country protection of the fundamental rights of the children and youth, equal pay for equal work, education etc.
- **Gandhian Directives:** Under these directives are the guidelines for organising village Panchayat, prohibition of intoxicating drinks and cow-slaughter, secure living wage, decent standard of life, and to promote cottage industries, to provide free and compulsory education to all children up to 14 years of age etc.
- **Liberal Intellectual Directives:** In this section there are guidelines for uniform civil code throughout the country and the legislatures to follow in issuing orders or making laws.

Features

In a nutshell, the Directive Principles consist of the following guidelines for the States:

- The State should strive to promote the welfare of the people.
- Maintain social order through social, economic and political justice.
- The State should strive towards removing economic inequality.
- Removal of inequality in status and opportunities.
- To secure adequate means of livelihood for the citizens.
- Equal work opportunity for both men and women.
- Prevent concentration of wealth in specific pockets through uniform distribution of the material resources amongst all the strata of the society.
- Prevention of child abuse and exploitation of workers.
- Protection of children against moral and material abandonment.
- Free legal advice for equal opportunities to avail of justice by the economically weaker section.

- Organisation of Village Panchayats which will work as an autonomous body working towards giving justice.
- Assistance to the needy including the unemployed, sick, disabled and old people.
- Ensure proper working conditions and a living wage.
- Promotion of cottage industries in rural areas.
- The state should endeavour towards a uniform civil code for all the citizens of India.
- Free and compulsory education for children below the age of 14 years.
- Economic and educational upliftment of the SC and ST and other weaker sections of the society.
- Prohibition of alcoholic drinks, recreational drugs, and cow slaughter.
- Preservation of the environment by safeguarding the forests and the wild life.
- Protection of monuments, places and objects of historic and artistic interest and national importance against destruction and damage.
- Promotion and maintenance of international peace and security, just and honourable relations between nations, respect for international law and treaty obligations, as well as settlement of international disputes by arbitration.

Implementation of the Directive Principles

As mentioned earlier, unlike the fundamental rights which are guaranteed by the Constitution of India, the Directive Principles do not have a legal sanction and cannot be enforced in a court of law. However, the State is making every effort to implement the Directive Principles in as many sectors as possible. The noteworthy implementation is the 86th constitutional amendment of 2002 which inserted a new article, Article 21-A, making free education for children below the age of 14 compulsory. Prevention of Atrocities Act safeguarding the interests of SC and ST, several Land Reform Acts, Minimum Wage Act (1948), are a few other examples of the implementation of the Directive Principles. Based on the guidelines of the Directive Principles, the Indian Army has participated in 37 UN peace-keeping operations.

Conclusion

There is no doubt about the fact that the Directive Principles of the Indian Constitution are the moral precepts with an educative value and stand for the ideals of this great nation. Ambedkar considered them as powerful instruments for the transformation of India from a political democracy into an economic democracy. The directives will help find the perfect way to a bright future through balanced

inclusion of both individual liberty as well as public good. This instrument of instruction should be adopted with open arms to help transform India into a power to reckon with.

Relationship between fundamental rights and Directive Principles

Fundamental Rights and Directive Principles of State Policy (hereinafter Directive Principles) as enshrined in the Constitution of India together comprise the human rights of an individual. The idea of constitutionally embodied fundamental rights emerged in India in 1928 itself. The Motilal Committee Report of 1928 clearly envisaged inalienable rights derived from the Bill of Rights enshrined in the American Constitution to be accorded to the individual. These undeniable rights were preserved in Part III of the Indian Constitution. The concept of Directive Principles embedded in the Constitution was inspired by and based on Article 45 of the Irish Constitution. The Directive Principles imposed a duty upon the state to not only acknowledge the Fundamental Rights of an individual but also to achieve certain socio-economic goals. Directive Principles were enumerated in Part IV of the Constitution.

Parts III and IV of the Indian Constitution were once described by CJ. Chandrachud to be 'the conscience of the Constitution.' However, there has perennially been a controversy surrounding the constitutional relationship between Fundamental Rights and Directive Principles, as there would be a conflict between the interest of an individual at the micro level and the community's benefit at a macro level. The central part of this controversy is the question pertaining to which part of the Constitution would have primacy in the case of conflict between Parts III and IV. In this brief paper, an attempt is made to ascertain and comprehend the constitutional relationship between fundamental rights and directive principles. The author seeks to map out three different perspectives of the judiciary and the legislature with regards to the relationship between Fundamental Rights and Directive Principles.

II. FUNDAMENTAL RIGHTS VIS-À-VIS DIRECTIVE PRINCIPLES

The primary distinction between the Fundamental Rights and Directive Principles as visualized by the drafters of the Constitution was with regards to the question of enforceability. Part III of the Constitution was enforceable against the state but Article 37 expressly provided that Part IV was not enforceable in a court. Early Supreme Court decisions attributed paramount importance to Fundamental Rights based on this aforementioned Constitutional position and provision. In the landmark judgment of ***State of Madras v Srimathi Champakam, State of Madras v Srimathi Champakam [1951] SCR 525***, that subsequently led to the 1st Constitutional Amendment, Justice Das stated that directive principles were expressly made unenforceable by Article 37 and therefore could not override the fundamental rights found in Part III, which were enforceable pursuant to Article 32.

The court opined that fundamental rights were sacrosanct and could not be curtailed by Directive Principles and asserted that the directive principles although important in their own respect were required to adhere to the Fundamental Rights and in the case of conflict Part III would prevail over Part IV. This view of the apex court was reaffirmed in subsequent landmark decisions such as ***Mohd. Hanif***

Quareshi v State of Bihar, Mohd. Hanif Quareshi v State of Bihar AIR 1958 SC 731 and In re Kerala Education Bill, 1957, [1959] SCR 995.

These decisions of the apex court were subject to much criticism due to the excess importance endorsed to Fundamental Rights resulting in the complete neglect of principles that promoted socio-economic change and development. The legislature was disappointed with the judiciary's interpretation and believed that it was contradictory to what the framers of the Constitution believed. Pandit Nehru in his speeches in relation to the 1st and 4th Constitutional Amendments expressly stated his disappointment. He stated, "There is difficulty when the Courts of the Land have to consider these matters and lay more stress on the Fundamental Rights than on the Directive Principles. The result is that the whole purpose behind the Constitution which was meant to be a dynamic Constitution leading to a certain goal step by step, is somewhat hampered and hindered by the static element being emphasized a little more than the dynamic element." It is therefore evident that the legislature believed that Fundamental Rights were to assist the Directive Principles and not vice-versa.

This subsequently led to a transformation in the interpretation of the relationship between Fundamental Rights and Directive Principles to be more inclusive and harmonious. In ***Chandra Bhawan Boarding and Lodging Bangalore v State of Mysore, Chandra Bhawan Boarding and Lodging Bangalore v State of Mysore***[1969] 3 SCC 84., the Minimum Wages Act, 1948 was challenged for conferring unrestricted, unfettered and arbitrary power on the state in determining the minimum wages. The state argued that it was obligated to provide for minimum wages in accordance with the Directive Principles. The court held that the provisions of the Constitution were created to facilitate progress, as intended by the Preamble and it would be fallacious to assume that the Constitution provided only for rights and no duties. Furthermore, it was stated that although Part III encompasses Fundamental Rights, Part IV was essential in the governance of the country and were therefore supplementary to each other. This view was reaffirmed in ***Kesavanda Bharati v State of Kerala*** where it was held that the directive principles were in harmony with the country's aims and objectives and the fundamental rights could be amended to meet the needs of the hour implying that Parts III and IV needed to be harmoniously construed.

Although these judgments were more dynamic in comparison to the previous approach that the apex court had extended, it still did not satisfy the ideals of the legislature. It could easily be speculated that the 42nd Amendment in 1976 was to accord primacy to the Directive Principles over the Fundamental Rights. The purpose of the amendment was to make the Directive Principles comprehensive and accord them precedence over the fundamental rights 'which have been allowed to be relied upon to frustrate socio-economic reforms for the implementing of Directive Principles'. This resulted in the resurgence of the debate on the relationship between Fundamental Rights and Directive Principles.

In ***Minerva Mills Ltd. v Union of India, [1980] 2 SCC 591.***, the court believed that the harmonious relation between Fundamental Rights and Directive Principles was a basic feature of the Constitution. It was stated that Part III and Part IV together comprised of the core of the constitution and any legislation

or amendment that destroyed the balance between the two would be in contravention to the basic structure of the Constitution. CJ. Chandrachud reasserted that Parts III and IV are complementary to each other and together they constitute the human rights of an individual. Reading these provisions independently would be impossible, as that would render them incomplete and thereby inaccessible.

However, this was not settled as law yet and there was another hiccup in the subsequent judgments. In **Sanjiv Coke Mfg. Co. v M/s Bharat Coking Coal Ltd.**, AIR 1983 SC 239, the Supreme Court held that the part of the **Minerva Mills** judgment that dealt with Article 31 C of the Constitution was merely *obiter dictum* and therefore not binding. The court thus upheld the Coking Coal Mines (Nationalization) Act, 1972 by granting greater importance to Directive Principles than Fundamental Rights in accordance with Article 31C that provided for the same.

The **Sanjiv Coke** judgment resulted in a divergence of opinion, which was ultimately settled in **State of Tamil Nadu v L. Abu Kavier Bai**, AIR 1984 SC 725. The court referred to the decision of Constituent Assembly to create two parts for these core constitutional concepts. It was stated that the purpose of the two distinct chapters was to grant the Government enough latitude and flexibility to implement the principles depending on the time and circumstances. The court therefore considered the **Minerva Mills** case as precedent and recommended a harmonious construction of the two parts in public interest and to promote social welfare. This view has been consistently adopted ever since and has been endorsed in **Mohini Jain v State of Karnataka**, [1992] 3 S.C.C. 666. and **Unni Krishnan v State of Andhra Pradesh**. It can therefore be construed to be well settled that a harmonious interpretation of Fundamental Rights and Directive Principles is quintessential in ensuring social welfare and the apex court is promoting the same view after much deliberation.

III. CONCLUSION

Although it appears to be well established that there is a need for balance and unanimity in interpreting Fundamental Rights and Directive Principles, this debate is far from over. The author believes that with the advent of judicial activism, the opinion of the court may change in due course of time. The courts off late have played a proactive role in facilitating socio-economic development at a macrolevel which requires compromise on a microlevel. Therefore in light of the benefit of the community at large, the Directive Principles may be used to determine the extent of public interest to limit the scope of Fundamental Rights.

Difference between Fundamental Rights and Directive Principle

*Fundamental Right

1. Part-III, containing articles from 12 to 35 deal with Fundamental Rights.
2. The Fundamental Rights can be enforceable by a court against the State.

3. These are primarily aim at assuring political freedom to the citizens by protecting them against the excessive State action.
4. The Fundamental Rights are given a pride of place by the Constitution makers.
5. The chapter of Fundamental Rights is sacrosanct and not liable to be abridged by legislative or executive act or orders, except to the extent provided in appropriate Article in Part III.
6. Grover Justice Supreme Court said: "where as the fundamental rights lay down the means by which that goal was to be achieved."
7. Fundamental rights occupy a unique place in the lives of civilized society and have been variously described in judgment of the Supreme Court as "transcendental", "inalienable" and "personal".
8. There are negative in character. The State is asked not to do certain things for the people.

Directive Principles of State Policy

1. Part –IV, containing Articles from 36 to 50, deal with Directive Principle of State Policy.
2. The Directive Principles of State Policy can not be enforceable by any Court.
3. These are aimed at securing welfare, social and economic freedoms by appropriate State action.
4. The Directive Principles are given a place of permanence by the Constitution makers.
5. The Directive Principles of State policies have to confirm and to run as subsidiary to the Chapter of Fundamental Rights.
6. Grover Justice Supreme Court said: "Directive Principles prescribe the goal to be attained."
7. The Supreme Court described the Directive Principles of State policy as "Conscience of our Constitution".
8. These are positive in character. The State is directed to take certain positive steps for the welfare and advancement of the people.

Q. Discuss Directive Principles under Part IV of the Constitution.

India borrowed the DPSP from Irish Constitution of 1937 which itself had borrowed it from Spanish Constitution. Further, the Government of India Act had some "instruments of Instructions" which became the immediate source of DPSP.

Key Features: DPSPs are not enforceable in a court of law. They were made non-justifiable keeping in view that the state may not have resources to implement them. All of them are novel principles which

call upon the state to provide a welfare government which can bring live ideals of the constitution. The directive principles are as follows:

Social, Political and Economic Justice: Article 38 directs the state to secure a social order with economic, political and social justice for the promotion and welfare of the people. Article 38(2) says that state shall strive to minimize the inequalities of income, status, facilities, opportunities etc.

Principles of Policy: Article 39 says that while framing policies, state would strive to provide adequate means of livelihood, equal pay for equal work, resource distribution, safety of citizens and healthy development of Children.

Free Legal aid: Article 39-A says that then state will try to make legal system fair and would provide free legal aid by means of some scheme or law etc.

Organization of Panchayats: Article 40 says that the state shall take steps to organize Panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government. The 73rd and 74th amendments of the constitution later culminated as constitutionally backed framework for this DPSP.

Welfare Government: Article 41 says that state shall (within its limits of economic capacity & development) will make effective provisions for securing right to work, education etc. and to Public Assistance in case of unemployment, old age, sickness, disablement or any other case of undeserved want. This article is used as a guiding principle for various social sector schemes such as social assistance programme, right to food security, old age pension scheme, schemes for sick and disabled, MGNREGA etc.

Securing just and humane work and maternity relief: Article 42 says that state shall make provisions for securing just and humane conditions for work and for maternity relief.

Fair wages and decent standard of life: Article 43 says that the state will endeavor to secure by suitable legislations or economic organizations or in other way to all workers, agricultural, industrial or otherwise, work, a living wage, conditions of work ensuring a decent standard of life and full enjoyment of leisure & social cultural opportunities and in particular promote cottage industries on an individual or cooperative basis in rural areas.

Worker's participation in management: Article 43 A says that the state shall take steps, by suitable legislation or in any other way, *to secure the participation of workers in the management of undertakings, establishments* or other organizations engaged in any industry. Government had launched various schemes on workers participation in PSUs to fulfill this directive.

Promotion of Cooperatives: Article 43-B inserted by 97th amendment act in 2011 says that state shall endeavor to promote voluntary formation, autonomous functioning, democratic control and professional management of the co-operative societies.

Uniform Civil Code: India's civil code is different only on the topics of personal law (ie- family law)- Marriage, Divorce, Alimony, Succession, and inheritance.

If you notice in all these topics, **If person A governed by a different personal law than person B, there is no possible way in which A's personal law can affect B**(Except for B's ego). So if one community traditionally has certain customs, the personal law for them has been framed to fit those customs.

Yes if you are jumping to the topic of personal freedom and cross religion marriages. Any Indian is free to marry under the Special marriage act of 1954 (which is the most progressive of India's civil codes, the default of many smaller communities such as Christians, and almost identical to the Hindu Marriage Act)

As the community matures, its personal law can be amended to become more progressive. (And the Hindu personal law is very progressive now because it was amended by the Hindu Marriage act of 1955, based on the very progressive Special Marriage act of 1954): Similarly the Muslim personal law requires some amendments from within the community as we are currently following a very old act which does not keep pace with the current standards of gender equality.

India has a diverse personal law because our culture and tradition is diverse. Some cultures follow different systems of inheritance (the law takes that into account), Some follow different ones in marriage (the law takes that as well) You can see the different personal laws in the link below.

A uniform civil code is a nice ideal, if the population is uniform enough. But as long as the personal law for each community is amended to the standards of the constitution and does not infringe on the rights of other communities, we should embrace our differences. (Similar to the argument to declare a national language. It would be nice to have a common tongue in India, but it is nicer to embrace the diversity that we have)

Now why is the Uniform Civil Code such a hot topic: The UCC is a topic that has been misused by one political party to target its favorite communal enemy and appear progressive at the same time.

It is a master political move, allowing them to take a moral high stand (since the Hindu Marriage act is progressive in gender equality while the Muslim marriage act is not). It also allows that party to incite fear in people who do not understand the act by making them believe that the current law favors one community more than the other. Let me re-iterate that **If person A is governed by a different personal law than B, there is no possible way in which this can affect person B.**

So to conclude, I will make two statements.

1) The Concept of a Uniform Civil Code is nice, but it is not a matter of importance. On the contrary, it would be a sudden and drastic change in personal law of many communities without doing any real good in the process.

2) The Muslim Marriage Act does indeed require amendment and reform.

3) Perhaps sometime in the future if all the acts have been amended to almost the same points, a Uniform Code can be introduced without any drastic change for any community.

Remember- Family law is built on tradition, and tradition can only be changed from within the respective communities. Do it from outside by standing on a moral high-horse and you will only create resentment.

Infant and Child Care: Article 45 says that State shall endeavor to provide early childhood care and education for all children until they complete the age of six years. The ICDS programme and other related schemes try to achieve this ideal.

Protection of SCs, STs, weaker sections from exploitation: Article 46 says The State shall promote with special care the educational and economic interests of the weaker sections of the people, and, in particular, of the Scheduled Castes and the Scheduled Tribes, and shall protect them from social injustice and all forms of exploitation.

Nutrition, Standard of living and public health: Article 47 says that the State shall regard the raising of the *level of nutrition* and the *standard of living of its people* and the *improvement of public health* as among its primary duties and, in particular, the State shall endeavor to bring about prohibition of the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health. Most of the social development programmes such as National Health Mission, Mid-Day Meal scheme, ICDS etc. which target the women, children, weaker sections of the society are inspired by Articles 45, 46 and 47.

Scientific agriculture and animal husbandry: Article 48 says that the State shall endeavor to organize agriculture and animal husbandry on modern and scientific lines and shall, in particular, take steps for preserving and improving the breeds, and prohibiting the slaughter, of cows and calves and other milch and draught cattle.

Environment and wildlife Protection: Article 48A says that shall endeavor to protect and improve the environment and to safeguard the forests and wild life of the country.

Protection of monuments and places and objects of national importance: Article 49 says that state will be obliged to protect every monument or place or object of artistic or historic interest, declared by or under law made by Parliament to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be.

Separation of judiciary from executive: Article 50 says that State shall take steps to separate the judiciary from the executive in the public services of the State.

Promotion of international peace and security: Article 51 says that state shall endeavor to promote international peace and security, maintain just and honorable relations between nations, foster respect for international law and treaty obligations in the dealings of organized peoples with one another; and encourage settlement of international disputes by arbitration.

Q. Discuss with case laws various Fundamental Duties recognised under the Constitution of India.

What is the significance of Fundamental Duties? Explain relation between Fundamental Rights and

Facing the inadequacies in the implementation of social justice provisions due to non-justiciability of Directive Principles, commentators have also pointed out that our constitution is embattled and

imperilled because we have failed to impregnate our social and political process with patriotic zeal and fulfill the aspirations.

To overcome this reality Article 51-A and Part IV-A were introduced by 42nd amendment in 1976.

The Duties: Part IV-A was added by the 42nd Amendment Act, 1976. It encompasses Part IV, Article 51A enumerating Ten Fundamental Duties of the Citizens of India.

Under this Article, it shall be the duty of every citizen of India-

- (i) To abide by the Constitution and respect the National Flag and the National Anthem;
- (ii) To cherish and follow the noble ideals which inspired our national struggle for freedom;
- (iii) To protect the sovereignty, unity and integrity of India;
- (iv) To defend the country and receive national services;
- (v) To promote the spirit of common brotherhood amongst all the people of India;
- (vi) To preserve the rich heritage of our composite culture;
- (vii) To protect and improve the natural environment;
- (viii) To develop the scientific temper and spirit of inquiry;
- (ix) To safeguard public property;
- x) To strive towards excellence in all spheres of individual and collective activity.

Of course, there is no provision in the Constitution for direct enforcement of any of these Duties nor for any sanction to prevent their violation.

But it may be expected that in determining the Constitutionality of any law, if a Court finds that it seeks to give effect to any of these duties, it may consider such law to 'be reasonable' in relation to Article 14 or 19, and thus save such law from unconstitutionality.

It would also serve as a warning to reckless citizens against anti-social activities such as burning the Constitution, destroying public property and the like.

Utility and Significance

This part was added to the Constitution of India with the recommendations of the Swaran Singh Committee. This part was added in accordance with the recommendations of the Swaran Singh Committee. It is meant to bring our Constitution in line with the Universal Declaration of Human Rights and the Constitutions of Japan, China, and USSR.

In one respect, the legal utility of the Fundamental Duties is similar to that of the Directives as they stood in the Constitution of 1949; while the Directives were addressed to the State, without any sanction, so are the Duties addressed to the citizen, without any legal sanction for their violation.

The citizen, it is expected, should be his own monitor while exercising and enforcing his fundamental rights, remembering that he owes the duties specified in Art. 51A to the State and that if he does not care for the duties he should not deserve the rights.

For instance, a person who burns the Constitution, in violation of the duty in Art. 51 A, cannot assert that the meeting or assembly at which it was burnt by way of demonstration against the Government should be protected by the freedom of expression or assembly guaranteed by Art. 19.

Of course, the duty as such is not legally enforceable in the Courts; but if the State makes a law to prohibit any act or conduct in violation of any of the duties, the courts would uphold that as a reasonable restriction on the relevant fundamental right.

The Fundamental Duties inscribed in the Constitution are a mixed bag of expectations and exhortations. Quite a good number of these items are those which are enforceable today even without their being specifically incorporated in the Constitution.

In this category fall the items to abide by the Constitution, respect the National Flag and the National Anthem, to defend the country and render national service when called upon to do so and safeguard public property.

To uphold and protect the sovereignty, unity and integrity of India draws sustenance from the same moral source from which the Constitution's Sixteenth or anti-secessionist amendment itself stems.

The three most important items in the list of Fundamental Duties are those requiring the citizens to respect the ideals of the Constitution and the institutions it establishes, to promote harmony and the spirit of common brotherhood amongst all the people of India professing different religions, speaking different languages, practising different customs and inhabiting different parts of the country, and to safeguard the public property and to abjure violence. These are clearly intended to meet certain specific political threats that democracy in India has to contend with.

The Indian Charter of Fundamental Duties is unique to include the duty to develop the scientific temper, humanism and the spirit of inquiry and reform. It has been incorporated to eradicate superstitions in which India is deeply soaked and to remove the ban of religious fanaticism, regional chauvinism and linguistic frenzy which have ever plagued India and retarded her unification into a cohesive society.

The duty to renounce practices derogatory to the dignity of women and to preserve the rich heritage of India's composite culture is two other moral codes to ennoble the society. These are, in fact, homilies to be taught in schools and colleges, rather than to be incorporated in the Constitution as Fundamental Duties.

In **Chandra Bhawan Boarding v. State of Mysore**, the Supreme court made the following observation prior to the insertion of Article 51-A: "It is a fallacy to think that our Constitution, there are only rights and no duties. The provisions in Part IV enables the legislature to build a welfare society and that object may be achieved to the extent the Directive Principles are implemented by legislation."

The Supreme Court has referred to these duties in the context of clause (g)--pollution matters and Clause (j)--excellence in the civil service.

In **A.I.I.M.S. Student's Union v. A.I.I.M.S.**, a three-Judge Bench of the Supreme Court made it clear that fundamental duties, though not enforceable by a writ of the court, yet provide valuable guidance and aid to interpretation and resolution of constitutional and legal issues. In case of doubt, peoples' wish as expressed through Article 51-A can serve as a guide not only for resolving the issue but also for constructing or moulding the relief to be given by the courts. The fundamental duties must be given their full meaning as expected by the enactment of the Forty-second Amendment.

In **Mohan Kumar Singhania v. Union of India**, a governmental decision to give utmost importance to the training programme of the Indian Administrative Service selectees was upheld by deriving support from Article 51-A (i) of the Constitution, holding that the governmental decision was in consonance with one of the fundamental duties.

In **Rural Litigation and Entitlement Kendra v. State of Uttar Pradesh**, a complete ban and closing of mining operation carried on in Mussoorie hills was held to be sustainable by deriving support from the fundamental duty as enshrined in Article 51-A (g) of the Constitution. The court held that preservation of the environment and keeping the ecological balance unaffected in a task which not only government but also every citizen must undertake. It is a social obligation of the state as well as of the individuals.

Enforceability of Fundamental Duties

The fundamental duties enjoined on citizen under Article 51-A should also guide the legislative and executive actions of elected or non-elected institutions and organisations of the citizens including the municipal bodies.

Duties are observed by individuals as a result of dictates of the social system the environment in which one lives, under the influence of role models, or on account of punitive provisions of law. It may be necessary to enact suitable legislation wherever necessary to require obedience of obligations by the citizens. If the existing laws are inadequate to enforce the needed discipline, the legislative vacuum needs to be filled. If legislation and judicial directions are available and still there are violations of duties by the citizens, this would call for other strategies for making them operational.

* The legal utility of fundamental duties is similar to that of the directives; while the Directives are addressed to the state, so are the duties addressed to the citizens, without any legal sanction for their violation. The citizen, it is expected, should be his own monitor while exercising and enforcing his Fundamental rights. He should keep in mind that he owes the duties specified in Article 51-A to the State and if he does not care for the duties, he does not deserve the rights.

of course, the duties as such are not legally enforceable in the Courts of law, but if a law has been made to prohibit any act or conduct in violation of the duties, it would be reasonable restriction on the relevant Fundamental Rights.

However, the fundamental Duties are not enforceable by mandamus or any other legal remedy

Directions to State/Central Government.—Since the Fundamental Duties are not addressed to the State, a citizen cannot claim that he must be properly equipped by the state so that he may perform his duties under Article 51-A. However, the Supreme Court has issued directions to the States, having regard to Article 51-A (g).

Protection of environmental—Duty of.—In view of the duty to protect and improve the natural environment including forests, lakes, rivers and wild-life and to have compassion for living creatures imposed on the citizens under Article 51-A (g) of the Constitution, the Supreme Court has held that it is a duty of the Central Government to take a number of steps in order to make this provision effective, and issued the following directions to the Central Government—

- a) To direct all educational institutions throughout India to give weekly lessons in the first ten classes, relating to the protection and improvement of the natural environment including forest, lake, rivers and wild life.
- b) To get text books written for the said purpose and to distribute them free of cost.
- c) To introduce short term courses for training of teachers who teach this subject.
- d) Not only the Central Government but also the State Government and local authorities are to introduce cleanliness weeks when all citizens including member of Executive, the Legislature and the judiciary should render free personal service to keep their local areas free from pollution of land, water and air.

Conclusion:

The Directive Principles of State Policy and Fundamental Duties are sections of the Constitution of India that prescribe the fundamental obligations of the State to its citizens and the duties of the citizens to the State. The Fundamental Duties are defined as the moral obligations of all citizens to help promote a spirit of patriotism and to uphold the unity of India. These duties, set out in Part IV–A of the Constitution concern individuals and the nation. Citizens are morally obligated by the Constitution to perform these duties. The Fundamental Duties are however, not legally enforceable, i.e. without any legal sanction in case of their violation or non-compliance.

There is a need for these duties to be obligatory for all citizens, subject to the State enforcing the same by means of a valid law, or else the law stands in a very disadvantageous position. The Supreme Court has finally, issued directions to the State in this regard, with a view towards making the provisions effective and enabling a citizens to properly perform their duties properly. This project was an attempt to check the enforceability of the fundamental duties under the different statutes, which have been references to the Indian Constitution.

Q. Explain the following:

a) Right to education

b) Freedom of Press

a) Right to education in Indian Constitution

The Constitution (Eighty-sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education of all children in the age group of six to fourteen years as a Fundamental Right in such a manner as the State may, by law, determine. The Right of Children to Free and Compulsory Education (RTE) Act, 2009, which represents the consequential legislation envisaged under Article 21-A, means that every child has a right to full time elementary education of satisfactory and equitable quality in a formal school which satisfies certain essential norms and standards.

Article 21-A and the RTE Act came into effect on 1 April 2010. The title of the RTE Act incorporates the words 'free and compulsory'. 'Free education' means that no child, other than a child who has been admitted by his or her parents to a school which is not supported by the appropriate Government, shall be liable to pay any kind of fee or charges or expenses which may prevent him or her from pursuing and completing elementary education. 'Compulsory education' casts an obligation on the appropriate Government and local authorities to provide and ensure admission, attendance and completion of elementary education by all children in the 6-14 age group. With this, India has moved forward to a rights based framework that casts a legal obligation on the Central and State Governments to implement this fundamental child right as enshrined in the Article 21A of the Constitution, in accordance with the provisions of the RTE Act.

The RTE Act provides for the:

- Right of children to free and compulsory education till completion of elementary education in a neighbourhood school.
- It clarifies that 'compulsory education' means obligation of the appropriate government to provide free elementary education and ensure compulsory admission, attendance and completion of elementary education to every child in the six to fourteen age group. 'Free' means that no child shall be liable to pay any kind of fee or charges or expenses which may prevent him or her from pursuing and completing elementary education.
- It makes provisions for a non-admitted child to be admitted to an age appropriate class.
- It specifies the duties and responsibilities of appropriate Governments, local authority and parents in providing free and compulsory education, and sharing of financial and other responsibilities between the Central and State Governments.
- It lays down the norms and standards relating inter alia to Pupil Teacher Ratios (PTRs), buildings and infrastructure, school-working days, teacher-working hours.

- It provides for rational deployment of teachers by ensuring that the specified pupil teacher ratio is maintained for each school, rather than just as an average for the State or District or Block, thus ensuring that there is no urban-rural imbalance in teacher postings. It also provides for prohibition of deployment of teachers for non-educational work, other than decennial census, elections to local authority, state legislatures and parliament, and disaster relief.
- It provides for appointment of appropriately trained teachers, i.e. teachers with the requisite entry and academic qualifications.
- It prohibits (a) physical punishment and mental harassment; (b) screening procedures for admission of children; (c) capitation fee; (d) private tuition by teachers and (e) running of schools without recognition,
- It provides for development of curriculum in consonance with the values enshrined in the Constitution, and which would ensure the all-round development of the child, building on the child's knowledge, potentiality and talent and making the child free of fear, trauma and anxiety through a system of child friendly and child centred learning.

M.C. Mehta v State of Tamil Nadu & Ors., the Supreme Court stated that Article 45 had obtained the status of a fundamental right following the Constitutional Bench's decision in Unnikrishnan. In addition, the Court said that, it is not necessary that in order to treat a right as fundamental right, it should be expressly stated in Part III of the Constitution: "the provisions of Part III and Part IV are supplementary and complementary to each other". The Court discarded that the rights in the provisions of Part III are superior to the moral claims and aspirations in the provisions of Part IV.

T.M.A Pai Foundation v. State of Karnataka, held that the state governments and universities cannot regulate the admission policy of unaided educational institutions run by linguistic and religious minorities, but state governments and universities can identify educational qualifications for students and make rules and regulations to maintain academic principles.

In the case of **Avinash Mehrotra v. Union of India and Others**, is whether right to education comprises right to study in quality school which does not pose threat to child safety? The court held that Articles 21 and 21-A of the Constitution obliges that India's school children obtain education in safe schools. The court had again stepped into the shoes of legislature by giving the aforementioned directions. The right to education has to move towards growth as merely primary education is made compulsory and free, the secondary education and other higher levels still lag behind. The problem of drop outs even at primary level needs to be solved. It could be considered that the court will always remain the guarantor of fundamental rights such as right to education and will direct the legislature and the executive when such questions are brought before it.

b) Freedom of Press

The Freedom of the Press is nowhere mentioned in the Indian constitution. The Right to Freedom of Speech and Expression is provided in Article 19 of the Indian Constitution. It is believed that Freedom of Speech and Expression in Article 19 of the Indian constitution include freedom of the press.

Citizens of India are guaranteed the right of freedom of speech and expression. Every Indian, including press reporters, can express ideas and views freely through press and public platform.

Freedom of expression enables one to express one's own voices as well as those of others. But freedom of the press must be subject to those restrictions which apply to the freedom of speech and expression. The **restrictions** mentioned in Article 19 are defamation, contempt of court, decency or morality, security of the state, friendly relations with other states, incitement to an offence, public order and maintenance of the sovereignty and integrity of India.

The status of freedom of the press is the same as that of an ordinary citizen. The press cannot claim any immunity from taxation, is subject to the same laws regulating industrial relations, and press employees are subject to the same laws regulating industrial employment.

Again, the press enjoys normal freedom of expression guaranteed by Article 19 of Indian Constitution. Hence no law can be passed to abridge its freedom of expression, cannot be subjected to excessive or prohibitive burdens to curtail its circulation and cannot be subjected to specific tax deliberately imposed to limit circulation of information. In gist, the constitution does not grant any power to the government to impose arbitrary restrictions on the press. Politicians in power often feel very tempted to pass laws restricting press freedom, to withhold information likely to generate unfavorable reactions among the people.

In 1976, during the emergency, the Parliament enacted the Prevention of Publication of Objectionable Matter Act. The Janata Government in 1978 repealed the Act. However, the 44th amendment adopted in 1978 has given the Parliament substantial powers to regulate press freedom. A new article, Article 361A has been added to the constitution with this object in view.

The censorship of the Press is a very crucial and sensitive issue in every democracy. In general press censorship is regarded as very unhealthy check on the freedom of free expression of views. In India, the constitution does not specifically forbid press censorship. Hence only check on the state in resorting to censorship is that it should be reasonable. Even this check on the government was not there before the 1st amendment of the constitution in 1951. But in two cases, **Brij Bhusan vs. the State of Delhi and Ramesh Thapar vs. State of Madras**, the Supreme Court held that censorship imposes obvious restrictions on freedom of speech and expression. After the last amendment, censorship is permitted if it is reasonable and if it is called for in the interest of public order.

Thus, the present position is censorship is valid in times of emergency if it is reasonable and if in the interest of public order. In times of emergency under Article 352 censorship is valid when Article 19 itself stands suspended under Article 358 of the constitution.